

EVERY WEEK

JAN. 7, 1922

Western Story Magazine

VOL. 22
No. 6

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STORIES
OF
OUTDOOR
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Signed H. H. H. H. H.

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BEWARE! ***

Rustlers Beware

Rustlers, Beware!

By
Arthur Chapman



Author of "Held for Ransom," etc

CHAPTER I

SEALED ORDERS.

I'm glad you've decided to throw in with us, Milt. It'll beat punchin' cows for a crusty uncle. You'll have a change of scenery from Texas to Wyomin', and all kinds of excitement, includin', mebbe, a little shootin', which ought to appeal to a young feller like you."

Two men sat conversing in the railroad station. One was middle-aged, with grizzled hair and mustache, tall and big-limbed, but with no extra flesh on his massive frame. His face was long-jowled and determined looking, and his keen gray eyes were overhung with bushy brows, which were often drawn together in a scowl. Asa Swingley had awed many an opponent into submission. Others, whom his aggressive appearance could not impress, he had beaten or shot, for "Two-bar Ace" was equally at home in a rough-and-tumble or a gun fight.

"Well, I've said I'd come, and you can count me in," said Swingley's companion. "But I reserve the right to drop out if I think things aren't on the level."

Swingley's brows drew together quickly, and he shot a stabbing glance into the eyes that looked into his. But there was no quailing under the look. The big cattleman gazed into the face of a youth whose determination equaled, if it did not exceed, his own.

Milton Bertram was only slightly smaller of build than the giant cattleman. Both men had laid aside their coats, owing to the heat of the station. In their flannel shirts, with cartridge belts and guns sagging at their waists, trousers tucked into high-heeled, spurred boots, they typified perfectly the man's country from which they had come. Bertram had laid aside his sombrero, showing a luxuriant crop of black hair with a distinct tendency to curl. His forehead was broad, its whiteness in strong contrast with his deeply tanned features. His smoothly shaven face was regular in outline, and his dark eyes, for all their straightforward and fearless expression, had a half-humorous twinkle in them which mystified Swingley.

“It’s too late for you to quit now,” declared the latter finally, discovering that he could not “look down” the youth at his side.

“I didn’t say anything about quitting,” answered Bertram easily. “I’ve thrown in with you, though it is at the last minute. But, to tell you the truth, I haven’t exactly liked the looks of this scheme very much from the start. You’ve shown too much secrecy about it—getting all these men together under sealed orders.”

“You’ll find it’s got the right brand run on it.”

“All right, but you’ve got to admit I’ve had some grounds for suspicion. The gang you’ve picked up is the worst in this section. You’ve headed the bunch with Tom Hoog, a notorious killer, and the others aren’t much behind him.”

“I like men who can take care of themselves,” replied Swingley.

“Well, you’ve got ’em over there,” went on Bertram, looking into the adjoining waiting room, where, in a haze of blue smoke, many cow-punchers could be seen, lolling about on bed rolls, waiting for the calling of their train.

They were, as Bertram said, a formidable-looking outfit. Nearly every man had a record as a killer. With big pistols slapping at their hips, as they walked, and with rifles in leather scabbards, stacked in the corners of the room, or leaning against the rolls of bedding, the outfit took on the appearance of an armed camp, during a moment of ease.

Tom Hoog, who had been mentioned by Bertram as the leader of this daredevil lot, sat apart from the others, gloomily smoking. He was of medium height, spare but sinewy, with an aquiline nose, which tended to curve downward over a thin-lipped mouth, in which a cigarette was always crimped as in a vise. Hoog’s hands evidently were his pride. They were long and slim, and they had always been kept so well gauntleted that they were as white as a gambler’s. A wonderful shot with rifle or revolver and gifted with uncanny quickness on the “draw,” Hoog had a reputation as a killer that had made his name feared throughout the district.

“Those fellows are all right,” went on Swingley, “but, outside of Hoog, they ain’t oversupplied with brains. That’s the big reason why I wanted to get you. With you and Hoog as my lieutenants I’m goin’ to be sure that things will go right, and my orders will be carried out.”

“Much obliged,” replied Bertram dryly.

“I had you in mind right from the first,” continued Swingley, with a keen glance at the young cattleman’s ingenuous face. “I knowed you had a row with your uncle, old Bill Bertram. Old Bill’s a hard one for any one to get along with, and the more land he gits control of the harder he is on them around him. I’m glad you’ve come in, even if it is at the last minute. Our special train’ll go inside of an hour, right behind the regular train for the north. You’ll have to look after your own beddin’ and guns and other stuff, but the wranglers’ll see to gettin’ your saddle aboard the baggage car, after they’ve loaded the horses, which they’re doin’ now. I’ll look for you around here in about an hour.”

The big cattleman rose and, with a growled “good-by” to Bertram, made his way to the adjoining room, where he took a hasty survey of the scene and spoke a few words to Hoog. After satisfying himself that none of the cow-punchers had succumbed to the lure of the town and drifted away from the station, Swingley strode out on the platform and was lost to sight along the tracks, where he had gone to superintend the last of the loading of the horses.

Left alone, Bertram smoked a moment, with his elbow on the arm of the bench. He knew that he had engaged in a desperate enterprise of some sort, but the thought of withdrawing was prompted not by the danger, but by the suspicion, that perhaps the expedition was of a shady character.

“If we were heading the other way, I’d swear it was a Mexican revolutionary project of some sort,” thought Bertram. “But there’s no doubt that we’re going north. I can’t think what it is, unless it has something to do with the cattle trouble that’s been going on in Wyoming. Anyway we’ll find out soon enough. Gee, but I hate the job of having to tie up with Tom Hoog and that gang in there!”

As he rose and put on his coat and stepped out of the station into the darkness at the poorly lighted entrance, Bertram’s attention was attracted by a young woman. He had noticed her a few minutes before in the station. She had come in alone, and, when the northbound train was called, had arisen and started for the door leading to the gate. But apparently she had lost her ticket, as, after a hurried search, she stood irresolute. Then, as if at a loss what to do, she had turned, and walked out of the station.

“You seem to be having trouble, ma’am,” said Bertram, raising his hat. “Is there anything I can do?”

The girl, for she seemed to be hardly more than eighteen, drew back in alarm at first, but something in Bertram's voice apparently reassured her, as she answered: "I've lost my railroad ticket."

"Where are you going?"

"To Denver. I must go on this train, and I'm ashamed to confess that I haven't enough money to buy another ticket."

The girl's voice was as appealing as her face, the beauty of which had attracted Bertram's attention in the waiting room. She was of medium height and of slender proportions, but life and determination were reflected in her quick, graceful movements and in her speech, which just now seemed to have lost some of the certainty which was a natural part of it. Her level brows were drawn together in a frown, and, in the light from the station window, Bertram could see something like tears glistening in the brown eyes.

"Have you inquired in the station?" asked Bertram.

"No, because I know that would be of no use. The ticket was stolen by somebody who wanted me to miss this train."

The cowboy's eyebrows were raised slightly, and he whistled. "Who'd want to stop you?"

"I can't tell you, but I have known that an attempt would be made to prevent me from going to Denver—and beyond. I noticed a rough-looking man next to me at the ticket window, an hour or so ago, when I bought my transportation. Then he was beside me again when I was checking my baggage. It must have been at the baggage window that he took the ticket from this bag."

"Well, your train goes in five minutes," answered Bertram. "There's only one thing to do, and that's to get another ticket pronto. Or, if there is any one watching you, maybe it'd be better if I bought the transportation. You wait here, and I'll see what I can do."

Before the girl could reply the young cowboy, who was used to acting on impulse, reentered the station and sauntered over to the ticket window. In a voice loud enough to be heard in the adjoining room he asked the ticket seller if the clock in the waiting room was right. Then, in a lower voice, he asked for a Denver ticket, accomplishing the exchange of money and transportation without calling any undue attention to the transaction. Then he sauntered to the door and stepped outside again.

“Come on,” he said, thrusting the ticket into the girl’s hand and keeping tight hold of the little fist. “There’s no use of your going through the ticket office. We’ll hurry around the end of the building, and you can dodge past all those trunks and get to the gate, just as easy as a colt slipping through a corral.”

“Where can I send the money for the ticket?” asked the girl, as they hurried through the darkness.

“Oh, just send it to Milton Bertram, care of William Bertram, of the Box Ranch, Bertramville,” replied the cowpuncher. “If you don’t write me a long letter, telling me how you enjoyed the trip, I’m going to be sure peevish.”

The girl laughed, and the note of her laughter was as clear as a meadow lark’s trill. Bertram stood in the darkness near the baggage room and watched her disappear through the gate. He saw the train depart and then turned regretfully away, his hand still thrilling to the touch of the girl’s hand, which had given his own a quick clasp of thankfulness.

CHAPTER II

WESTERN SOLDIERS OF FORTUNE.

On the way to Denver, Bertram began to find out something concerning the nature of the enterprise with which he had become identified.

The train was divided into two sections, the first consisting of three passenger and two baggage cars. A hundred men rode in the coaches, and the baggage cars were filled with a miscellaneous assortment of tents, saddles and general camp equipment.

"There's a train follerin' right behind," said Archie Beam, a cowpuncher, into whose seat Bertram had dropped. "It's a stock train, and it's got enough hosses for all us and more. I hear that every other train along the line has to give our two trains the right of way. You might think we was goin' for the doctor, or somethin' instid of bein' on a stunt that prob'ly will make a lot of other fellers call for the doctor."

"Think we're in for a scrap, do you, Arch?" asked Bertram, looking out of the window at the sagebrush that flitted by in a never-ending stream, as the train whirled through the desolate plateau country, where many an emigrant train had met a sad fate.

"Boy, I know it!" said the cowpuncher, delighted to air his superior knowledge. "We're goin' to be jumped right in the middle of that northern Wyomin' cattle trouble, and we're goin' to be told to begin shootin' right and left, and never to let up till there ain't a native hombre, left alive."

"Where'd you get your information, Arch?"

"Don't josh me, Milt. You know as well as I do that there's been a heap of trouble in Wyomin', for the last few years, don't you?"

Bertram signified assent. Along the great cattle trails, stretching from Texas to the Canadian line, there had come news of serious and long-standing troubles in northern Wyoming. Rustlers and big cattle interests were almost at a point of open war. The cattle interests claimed that the rustlers had been carrying on wholesale operations. Every small rancher was under suspicion. The great herds were being depleted, it was claimed, and numerous small herds were being built up at the expense of the heavily

capitalized interests. Men who had counted themselves millionaires were faced with ruin, owing to the melting away of their herds.

“These single cinchers all tell the same story when they come down to this part of the country,” said Archie, alluding to the single rig of the northern cattlemen, as opposed to the double cinch of that district. “They say there’s been much trouble all over the northern part of the State. The thing has got so bad that the little cattlemen have took to pottin’ the big ones. A cowman, who don’t belong with the rustlin’ majority, is takin’ chances every time he throws his leg over a saddle and starts out to git a little fresh air.”

“Which side is right?”

“What’s the difference which side is right?” said Archie, asking a question in answering one. “We’re out to play the game for the side with the most money, which is the big cattlemen, of course. I ain’t constitutionally opposed to rustlin’ cattle. I’ve packed a runnin’ iron in my boot so long that it’s made me a little stiff-legged, but a man in that game’s got to take his own chances. I took mine, and these Wyomin’ rustlers have got to take theirs. I guess they’ll think somethin’ popped when this gang cuts loose on ’em. There ain’t a hombre in this crowd that ain’t got his man, I guess, all but you, Milt. Old Two-bar Ace must have thought you had gone far enough lately to be part and passel with us. You sure have been hittin’ it up, boy, to be classed in with a fightin’ gang like this. Well, so long, and a short war and a merry one.”

Bertram’s grip on the seat in front of him tightened, as the cowboy departed, called by some riotous members of the gang.

The young Texan knew that the cowboy had spoken the truth. Bertram had been traveling a fast pace, even for the great outdoor land, where restrictions were few. He had been brought up on a ranch on the Brazos, where he had spent as much of his time as he could induce his devoted mother to let him subtract from school. He had even attended college at Austin, but his mother’s death, before he had graduated, had brought to light the fact that the ranch had been mortgaged to pay for Bertram’s education.

Before Bertram realized what had happened, the ranch had passed from his control. He sought to drown in wild companionship his sorrow at his mother’s death and the poverty he had unwittingly brought upon her. At last he had been offered a job as cowpuncher on the big ranch of his uncle, one

of the large landowners in the southern part of the State. He had accepted, but he had found no consolation in the change, as his uncle was an utterly uncompanionable man. Bertram tried to put up with the old fellow's caprices for a while, but soon they became unbearable. There were open disagreements between the men. Bertram did his work well, as there were few who could equal him in the saddle, but nothing could stop the old man's harsh complaining. Finally the old attractions began to summon the youth. There were wild excursions to near-by frontier towns. Bertram became a leading spirit among the daredevils who frequented the bar and the gambling tables. His name became known along the trail for its owner's wild exploits.

One day there came an open break with his uncle. Laughing at the old man's senile anger and turning his back upon the reproaches which his uncle hurled at him, Bertram rode to the big town, where, in just the right mood for any adventure, he had been picked up by Asa Swingley and had been enlisted in the adventure which Archie Beam had foreshadowed as something desperate in character.

"He's right. I'd gone farther than I ever imagined," declared Bertram, as he glanced about him and made a mental note of those in the car.

There was Tom Hoog, who killed for the love of killing. Hoog had been a figure in much range warfare. He had played a part in a cattle war in that country, which had assumed such proportions, that the governor of the State had intervened. It had been said that Hoog had fought on both sides in that war, putting his services at the disposal of whichever side happened to bid the higher at the moment. He had fought men single-handed and in groups. He had been captured and had escaped, generally leaving a trail of death behind him. Yet his killings had always gone unpunished, because the fear of the man even extended to officers of the law.

Others in the party were the possessors of reputations only a shade less evil than Hoog's. A few, like Archie Beam, were merely wild and irresponsible, and they had joined the expedition for a lark.

Swingley passed among the men, loudly solicitous of their welfare. Food was brought in, and there was some drinking. Several of the men were maudlin before Denver was reached. Others were at the quarrelsome stage. Swingley stopped several incipient gun fights, but otherwise let the men behave as they pleased. Bertram took no part in the drinking, though he joined an occasional game of cards. He was not inclined to depart from the

letter of his bargain with Swingley, but he was thinking hard, as the train pounced over the desert, beside the long, blue chain of the Rockies.

Noticing his abstraction Swingley rallied Bertram about it. "Things'll be more lively, soon after we leave Denver," he said, pausing at the young Texan's seat. "We've got some more people to meet there, and we'll be tied up several hours. I want you to help me keep an eye on some of these drunken punchers, to see that they don't wander away where we can't get 'em."

At Denver the motley crew piled off the special and swooped down upon the station. Swingley's orders against "seeing the town" were strict, but some of the cow-punchers attempted to slip away and were turned back. It was evening, and, in the half-light on the station platform, Bertram thought he recognized a woman's figure, as it flitted around the corner of the building. A few hasty steps brought him to the side of the young lady whose ticket he had purchased.

"I see that the ticket we got wasn't counterfeit, and you arrived here, all right," observed Bertram delightedly. He saw that she had smiled, as she greeted him, and she seemed genuinely pleased, in spite of the evident perturbation under which she was laboring.

"Yes," she said, "but I'm afraid all your generosity has been in vain."

"What's the trouble? Is there any way I can help you further?"

Bertram was looking at her, as he spoke. Her face was pale, but evidently owing to the mental strain. Her eyes just now were clouded with sadness, and her voice trembled with agitation.

"You've done enough as it is," she answered—"more than any other stranger has ever done for me. I've met friends here, and now I can pay you the money for my ticket."

"I didn't want you to bother about that," said Bertram, as she opened her pocketbook and counted out the bills into his reluctant hand. "Settling this thing deprives me of a chance of meeting you again, unless you're going to be kind enough to let me meet you, anyway."

Even in the semidarkness Bertram could see the girl's quick blush, as he went on speaking. "I'm going to be honest enough to say that I admire you a whole lot. I've been counting on hearing from you later on. Won't you tell me your name?"

“It would do no good,” said the girl. Then, with an earnestness that startled Bertram, she added: “but, if you want to please me and do the right thing by yourself, you will go no further on this expedition.”

“I can’t do that, because it would be going back on my word,” replied Bertram. “But why should I leave the expedition?”

“If you don’t, there will be the death of honest men on your hands,” said the girl. “Why did you promise to go with a man like Swingley, anyway?”

“Just plain foolishness, I guess, the same as any other soldier of fortune shows.”

“Those men are not soldiers of fortune—they are soldiers of murder,” exclaimed the girl. “If you go on with them you’ll be one with them.”

“Then it means something to you?” asked Bertram triumphantly.

“Yes,” said the girl, with another quick flush. “It means just what it would if I saw any young man on the wrong road.”

“Well, even if you put it that impersonally, still I’m glad,” replied the young Texan. “I’ve got to go on with the outfit, but I promise you one thing—that, if there’s any murder done, my hands won’t be red.”

Just then, from around the corner of the station, came the sound of men’s voices, in a cowboy song.

“They’re coming,” said the girl. “I don’t want them to see me. I’m going to be on the northbound train that goes just ahead of yours.”

“But your name, and where can I see you?” persisted the cowboy, clinging to the soft little hand which he found in his big fist.

“If you’ll let go my hand, I’ll give you a card,” said the girl, with a nervous laugh. Bertram reluctantly released her hand. He felt a card thrust into his fingers, and an instant later the girl had disappeared around the end of the station. He followed her swiftly moving form with his glance, as she passed along the dimly-lighted platform and vanished through the gate leading to the tracks. Then he stepped to a light and read the card eagerly.

“Alma Caldwell!” he exclaimed, repeating the name several times. “Pretty name for a prettier girl! I wonder why a girl like her knows about Swingley’s little expedition, and why she’s so anxious to keep ahead of us.”

CHAPTER III

BERTRAM MAKES A GO-DEVIL.

The men detrained at a little northern Wyoming town, the terminus of the railroad, after an all-night journey from Denver.

Swingley was everywhere, asserting his leadership. There was none of the jocularly about him now, which he had assumed during the long journey. His orders were sharp and imperative. They were accompanied by blows, on two or three occasions, when cowpunchers did not move quickly enough to suit him. One of the men, who had made a move to draw his gun, was knocked bleeding and insensible before he could drag the weapon from its holster.

Evidently things were moving according to a prearranged program. There were chuck wagons on hand, into which food and cooking utensils were piled. Also there were wagons for the bedding.

Twenty or thirty additional men had joined the outfit at Denver, and these were reinforced by as many more, who were waiting at the station when the special train arrived, followed in an hour or two by the train carrying the horses.

The new men were apparently of the same ilk as those who had joined from the start—sunburned, hardy-looking fellows in cowboy garb, and every one of them was heavily armed. There were greetings between some of their number and a few of the new arrivals, as the long trails abounded with men who were accustomed to drifting from one ranch to another, and whose circle of acquaintances was correspondingly large.

The only accident preparatory to getting the cavalcade under way was one that was destined to affect Bertram strangely.

“Milt,” called Swingley, reining his sweating horse in front of Bertram, who was smoking a cigarette and wondering what had become of the girl whose card had been taken out and scanned many times. “Milt, I know you’re handy at blacksmithing. Old Jim Dykes, the only horseshoer we’ve got along, has got himself kicked in the arm, and he won’t be any more good to us on this trip. Come and help us out.”

Bertram accompanied Swingley to the improvised forge, where the groaning blacksmith was having his injured arm set by an amateur surgeon. The young Texan had often been called upon to shoe fractious bronchos on his uncle's ranch, the work presenting little difficulty to him on account of his exceptional skill in managing the wildest horses.

Seeing that the old blacksmith was incapable of further work, Bertram took off his coat and rolled up his sleeves, disclosing a pair of muscular arms, and in an hour he had completed the tasks necessary to set the caravan moving.

"It sure was lucky that I remembered seein' you blacksmithin' on your uncle's ranch," said Swingley, reining his horse beside Bertram's, shortly after the start was made. "You may have to help us out a little more before we git through, but, anyway, mebbe you'll have pleasanter work mixed in with the blacksmithin'—a little shootin' at a mark, for instance." Swingley had grinned meaningly, as he spoke.

"I've heard there might be some shooting," observed Bertram dryly, "but I might as well let you know right now that I always get an awful attack of buck fever when I'm shooting at men."

"You'll forget it when we hit into the thick of the fightin'," returned Swingley, not catching the sarcasm in Bertram's voice, or deliberately overlooking it. "I don't mind tellin' you that we may be in for a little ruction inside of another twelve hours. We've come up here to put an end to cattle rustlin' in this part of the State. The rustlers are so strong that they've been runnin' things as they wanted. But, when they see what they're up against now, it may be that they'll quit without a fight. If they don't—so much the worse for them."

Swingley turned in his saddle and looked proudly back at his little army. The sight would have inspired pride in any captain. Here was a grim company of tanned, resolute-looking horsemen, riding with that easy grace peculiar to the saddlemen of the Western plains. The loud jests that had been heard on the train were not in evidence. The men rode quietly. Pistols were ready to the grasp, as were the guns in the scabbards at the horses' sides. Behind the command rumbled the camp wagons.

"Cattle rustlin' is goin' to be a lot less popular than it has been, before this outfit is through," observed Swingley, "and there'll be some old scores that'll be paid off in full, too."

The cattleman's voice was thick with passion. His heavy brows were drawn together in a frown, and the muscles of his powerful jaws worked spasmodically as he clenched his teeth determinedly.

"I hope this crowd ain't been brought up here just to settle some old personal scores," answered Bertram, his voice bringing Swingley back with a start.

The cattleman, darting a quick glance at Bertram, realized that he had said too much. Muttering something about picking a camping place for the night he spurred ahead, leaving Bertram plodding with the column at the moderate pace which had been prescribed.

The young Texan's thoughts went back once more to the girl whom he had met at the station. He paid scant attention to the talk of Archie Beam, who had taken Swingley's place at his side. He was wondering about the girl—who she was, and the mission which had sent her on her long journey. Evidently it was a mission of some danger, for she had hinted at enemies who had sought to interfere with her progress. And her apparent knowledge of the purpose of the expedition was a puzzle. How much did she know of Swingley's invasion of Wyoming, and what interest could it hold for her?

"Well, if nothin' else'll wake you up, pardner," said Archie good-naturedly, after many ineffectual attempts to arouse Bertram to conversation, "mebbe the smell of a little bacon and coffee will help. It looks as if we're goin' to camp right ahead, and them chuck wagons can't come up too soon fer me. I could eat everything in them wagons and then chase the hosses."

Swingley had picked an admirable camp site in a grove of cottonwoods, beside an alkali-lined stream. Several springs near by afforded plenty of pure water for cooking purposes. Soon the wagons rattled up. Tents were put up, beds were unrolled, and the cooks had supper started. The men lolled about at ease, but there was no drinking, nor was there any card playing. Conversation was carried on in low voices. As soon as supper was over and the night herders were told off most of the men turned in and were sound asleep in a few minutes. They might be called on to fight before the night waned, but these men, used to the arbitrament of firearms, were not to be robbed of their sleep.

Bertram was aroused, apparently before he had more than dropped off to slumber. Swingley was shaking him by the shoulder, and Hoog was

standing in the entrance to the tent. The moon was high, and Bertram could see the faces of both men distinctly.

“Come on out,” said Swingley gruffly. “We’ve got some special work for you.”

As he dressed hurriedly, the young Texan saw that it was only a little past midnight.

“We’ve had your hoss brought in,” said Swingley briefly. “Saddle quick and come on with us.”

Without any questions Bertram saddled his horse. The three men mounted and rode out of camp silently. As soon as they struck the road Swingley and Tom Hoog took the lead, Bertram riding close behind them at an easy gallop. Nothing was heard for an hour or more but the pounding of hoofs on the hard road. Then Swingley and Hoog turned in at a long, one-story building, which was set a short distance back from the road. Bertram followed, and the three men dismounted.

Swingley and Hoog, dropping their reins, entered the wide doorway of the building. After they had lighted two lanterns, that were bracketed in the wall, Bertram saw that the place was a fairly well-equipped blacksmith shop. There was a pile of old horseshoes in one corner, and in another was considerable farm machinery of various sorts.

“Can you take something out of that pile of junk and make up a sort of fort on wheels?” asked Swingley of Bertram. “I might as well tell you that we’re goin’ right on to Wild Horse, the county seat, forty mile from here. Before we reach the town we may have to do some purty stiff fightin’, and I figger that somethin’ armored may come in handy. Old Jim, the blacksmith, was outlinin’ somethin’ that he had in his head—a kind of go-devil on wheels he called it—but now he is useless, and I want you to help me out.”

Bertram showed no surprise. In fact no development of this strange adventure, in which he found himself cast, could surprise him. He looked the pile of machinery over carefully.

“There are the wheels and frame of a hayrake,” said Hoog. “And there are a couple of road scrapers. Take the bottoms of those scrapers and fasten them to the hayrake frame, and you’ve got something that you could walk right up to a nest of rifles with. Ain’t that right, Bertram?”

The young Texan nodded. “I reckon it might work out that way,” he replied, “but I didn’t know that you were accustomed to getting your men

from behind things like that, Hoog.”

The gunman darted a murderous glance at Bertram, and his hands moved toward his hips, but Swingley stepped quickly between the two men.

“Hyar! No fussin’!” he commanded. “We ain’t got more’n two hours start of the gang, and we’ll have to work fast. Let’s have that go-devil fixed ’fore the boys git here.”

Bertram knew that to refuse outright would be equivalent to a declaration of war. Yet he was far from having so detached a viewpoint regarding the expedition as he had at the start. Previous to his meeting with the girl he had been ready for most any adventure. As an alien gunman—a Hessian in cowboy traps, as he bitterly called himself—he would have cared little about any harm he might bring to those concerned in this range war, so remote from his home. Cattle interests or rustlers—it had made no difference to him until he had met Alma Caldwell. Since then a growing distaste for the whole business had come upon him. Yet he could not very well drop out. He would be a marked man in a strange country, and somebody would be certain to slay him as one of the invaders.

Working so leisurely that he made Asa Swingley curse fervently under his breath, and deepened the glitter of hate in Tom Hoog’s eyes, Bertram started the forge fire and performed the comparatively simple task of attaching the scraper bottoms to the wheels.

When the work was completed Swingley crouched behind the contraption and pushed it about with an enthusiasm that was almost boyish.

“You’ve been slow enough about it, Milt,” he said to the young Texan, who stood with bare arms folded over the leather apron Swingley had provided, looking at the cattleman in undisguised contempt. “But it’s a good job, all right. If anybody holes up in front of us, they ain’t goin’ to stay holed up very long, now that we’ve got this go-devil.”

It was as Swingley said. The machine would afford protection for two men, who might push it with their hands under the very muzzles of rifles and revolvers. Bullets might rattle against that thick shield of iron, but the men behind it would be safe.

“Old Jim had the right idea!” exclaimed Swingley, “and you’ve worked it out in good shape, Milt. It’s time for the crowd to be comin’ up, and, if I ain’t mistaken, you can see this go-devil tried out, purty quick after daylight.”

As Swingley spoke, the advance guard of the command could be heard coming, and soon the road by the blacksmith shop was filled with mounted men, none too good-humored at being routed out before sunup and without breakfast.

“There’ll be plenty to eat after a little work that’s mapped out first,” said Swingley, haranguing the crowd. “The first rustlers we’ve got to git are not more’n a mile ahead of us, in a cabin to the left of the road, toward the foothills. You can’t miss the place. I want it surrounded. If any man from the cabin shows his face after daybreak, he’s to be shot—and shot dead. But I don’t want any noise and no firin’ till you see somethin’ to shoot at. Tom Hoog will take half the men this side of the cabin, and I’ll take half around on the other side. Be careful shootin’ across, so we don’t hit each other.”

Hoog and his division started up the road. The moon was beginning to pale, and there were bird noises from the prairie, indicating that dawn was not far away.

Bertram had not put on his coat, but still stood in his leather apron, a sledge hammer in his hand.

“That’s right, Milt,” said Swingley, reining his horse beside the young Texan, “you stay here and be ready to bring up this go-devil when I send for it. Arch Beam, you stay here with him.”

Bertram knew that Swingley was suspicious, that he had detailed Beam as his guard. He smiled grimly, as the leader of the expedition clattered away at the head of his half of the command.

“Arch,” said Bertram, as the last echo of hoofs died away, “let’s see your gun.”

“Sure,” said the cowboy, handing over his six-shooter, with a grin. Bertram put the weapon in his own belt, beneath the blacksmith’s apron. Then he stepped to the cowboy’s horse, which was standing riderless in the doorway. Drawing Beam’s rifle from its scabbard Bertram extracted the cartridges from the magazine. Then he put the weapon back where he had found it.

“Now Arch,” said Bertram calmly, “consider yourself held up. Both guns are useless, and I’ll ask you to step back in the shop and not move, while I undo a little piece of work I’ve had to do for Swingley.”

“Sure,” replied the imperturbable Arch, with a grin, “I’ve seen so many queer things on this queer picnic that nothin’ is goin’ to surprise me—I’ll

give you warnin' of that."

Bertram swung the sledge and with half a dozen strokes destroyed the wheels of the go-devil, past all fixing. Then he flung the hammer into one corner of the smithy and, rolling down his sleeves, put on his coat.

"Arch," he said, "I'm quitting this expedition right here. Want to desert with me?"

"I don't guess I do," replied Arch, surprised in spite of himself. "The people in this country will scalp you alive when they learn that you came in here with this gang. You'd better stay on and chance it with us, Milt."

"I'd have to fight Swingley when he saw that," replied Bertram, pointing grimly to the destroyed go-devil. "Between the two camps of enemies I seem to have made, there's nothing for me to do but take to the brush. Good-by, Arch, and sorry to have had to hold you up."

Bertram flung down the cowboy's empty gun and, swinging into his own saddle, cantered down the road, with a backward wave of his hand to the puzzled cowboy in the doorway of the blacksmith shop.

CHAPTER IV

A BATTLE AND A BULLET.

Bertram knew that the wagons would soon be coming along, under guard. Accordingly he turned off toward the foothills, which were beginning to be touched with pink. At a few rods from the road he was indistinguishable in the tall sagebrush and scattered groves of quaking asp and cottonwood. As he neared the foothills the tree growths became thicker, and soon he was moving in a forest which was comparatively free from down timber and underbrush.

The loneliness of the country struck Bertram as amazing. They had passed by no ranch houses on the road during the journey of the invaders from the railroad terminus. The blacksmith shop was undoubtedly the first outpost of civilization. All else was given over to unfenced prairie.

As the light grew stronger, and the bird sounds more pronounced, Bertram heard the sound of firing from the direction in which the raiders had gone.

There was a heavy volley, succeeded by firing at irregular intervals.

Being without any definite purpose in mind Bertram determined to make his way as close as possible to the firing and observe what was going on. Sheltered in the trees on the sides of the foothills the task was not difficult. From one glade he caught a glimpse of the blacksmith shop and saw that the mess wagons and bed wagons were grouped about the building. From the smoke he judged that the cooks were getting breakfast.

Pushing on, but always keeping in the shelter of the trees, Bertram advanced nearly a mile. The sound of firing grew more distinct, as he went on. There were no more volleys. Evidently the men were firing at random, but shooting steadily.

When he judged that he was about opposite the scene of the combat, Bertram tied his horse in a clump of quaking asp and made his way cautiously to the edge of a clearing, where he could command a view of the scene below. Through the binoculars, which he always carried, he watched

with interest the development of a drama which had already taken the form of tragedy.

In the center of a considerable tract of cleared land stood a cabin. It was a small cabin, evidently not more than one room, but stoutly built of logs. There was no porch, but close to the single step, leading to the front door, lay the figure of a man, evidently dead. A water bucket, upturned, was near his outstretched hand.

“They didn’t give him a chance, the curs! They must have shot him as he started to the spring for water,” said Bertram aloud, noticing the well-worn trail from the door to a small ravine, one hundred yards or more away.

Sounds of firing came from the ravine and from the clumps of trees on all sides of the clearing in which the house stood. Answering shots came from the house. It was evident that the defense was being put up by one man, an expert marksman.

“He must have hit some of ’em right at the start,” muttered Bertram, “or they’d have rushed the house.”

The cabin seemed to be liberally provided with loopholes, as shots came from all sides. The lone defender, plainly enough, was distributing his shots impartially, keeping a good lookout to see that no parties gained the shelter of the cabin walls.

The bright sunlight crept down the foothills and flooded the scene of battle. Still the fight went on. One hour passed—then two. The man in the cabin seemed to have an unlimited supply of ammunition. If he could manage to hold out much longer, perhaps the countryside would be aroused and come to his rescue. Bertram knew from the talk of Swingley and others that there were many ranches between this outpost and the county seat, where the invaders had planned to dispossess the sheriff and strike their heaviest blow. If they were delayed too long, their surprise march would be futile.

The Texan could imagine how Swingley was fuming at the unexpected resistance, and how he was urging the cowboys to renewed efforts to “get” their man. But, in spite of the countless shots that were directed at the windows and loopholes on all sides of the cabin, not a bullet seemed to take effect. The return fire came steadily from the cabin—first from one side and then from another.

Bertram saw two cowboys being led away from the field of battle, evidently victims of the man who was fighting against such odds.

“Unless they’ve got something up their sleeve,” thought Bertram, “Swingley’s men might as well move on. This man seems to have plenty of ammunition, judging from the free and easy way he is firing, and he can keep up this long-range fighting all day, unless a chance bullet hits him.”

Hardly had the thought crossed his mind when, under cover of unusually heavy firing from that side, Bertram saw a two-wheeled armored device, similar to the one he had recently smashed, being pushed along the road that led from the highway to the house.

“By the gods, Swingley has had his way in spite of me!” ejaculated Bertram. “Blacksmith Jim must have come up and told them how to fit those scraper irons to another pair of wheels.”

Slowly the improvised war engine moved toward the house, under a concentrated fire of rifles. Bertram, from his elevated position, could catch a glimpse of the feet of the men behind the armor, as they pushed the go-devil toward the cabin.

The lone defender of the ranch house sensed the danger to which he was exposed by this new element in the fight. He fired shot after shot at the advancing go-devil, but still it came on.

Bertram watched intently. At first he thought it was the intention of the men to reach a loophole or a window and fire through it, but he soon saw that such was not their idea.

A bundle of straw was tossed over the top of the go-devil, against the cabin door. Another bundle followed, and then the go-devil was slowly backed away from the cabin.

“Burning him out, as if he might be a wolf, without a chance for his life!” exclaimed Bertram, striking his forehead in anger. “I’ll bet Ace Swingley himself is behind that go-devil. No one else could think up such a plan and carry it out.”

Almost as the Texan spoke flames burst from the straw pile at the cabin door. In a few seconds they had crept up the dry woodwork and had reached the roof. By the time the men with the go-devil had reached a place of safety, one side of the cabin and the roof were ablaze.

Thinking that the defender of the cabin would attempt to escape by way of the rear door, Swingley brought most of his forces around on that side.

To Bertram's amazement the front door opened, and a man, bareheaded and coatless, carrying a rifle in one hand, ran swiftly toward a gulch in the foothills. The man had a good start before the besiegers realized how cleverly they had been outwitted. If there were any riflemen concealed in the growth of timber and underbrush, toward which the man was making his way, they were too surprised to shoot. But bullets began flying from the thicket on the opposite side of the cabin. A few yards from the protecting gulch the runner stumbled and fell heavily. Animated by a determination which even his foes must have admired, he, rose slowly to his knees and then to his feet, using his rifle as a crutch.

The rifle fire had died away, as everybody seemed intent on watching the next move. Then a single shot was heard, as the defender of the cabin started to run again, and the man fell and lay still, his arms outstretched, his face turned to the sky.

The brutality of the killing caused the young Texan to tremble, as if he had been smitten with ague. He had seen sudden death in many forms, but this murder of one man by scores of assassins shook his consciousness to the center. It seemed as if a crime so monstrous could not go unpunished on the instant. Bertram almost looked for a lightning bolt to descend from the blue sky and strike down the riflemen. When the rifle firing had ceased serenity had returned to the scene. The meadow larks resumed their trilling, and, if it had not been for the burning cabin and the two still forms in the clearing, one might imagine that death and destruction could never visit so peaceful a haunt.

Now that their mission at the cabin was over, the invaders paid no further attention to their handiwork. Evidently under orders from Swingley, they swarmed out of the clearing toward the road, ready to take up the march without further delay.

Through his glasses Bertram saw Swingley approach the body at the edge of the clearing. The big cattleman appeared to be writing something. Then he stooped and attached a piece of paper to the dead man's breast. Turning hastily aside, Swingley strode across the clearing, intent on marshaling his forces.

Bertram saw the dust and heard the clatter of hoofs, as the cavalcade took up its march. Then he could hear the rumble of the wagons. The roof of the cabin fell in with a crash, and the crackling of flames began to

subside. The young Texan led his horse down the slope and into the clearing, which had been the center of such spirited conflict.

The body of the first man still lay where it had fallen, close to the cabin door, with the water bucket a few feet away. Approaching as closely as he could, and shielding his eyes from the mass of coals that had been the cabin, Bertram saw that the man was rather below medium stature and past middle age. Evidently he was a ranch helper—a cowboy who had seen his best days.

The man at the edge of the clearing was tall and powerfully built. As he lay with his arms outstretched, his brawny hand still clutching the rifle, he made an imposing figure even in death. His features were aquiline, his nose having the curve of an eagle's beak. Though he, too, was past middle age, there was no hint of gray in his hair. Plainly enough he had been a leader of men, a foeman to be feared.

Bertram, stooping, read the message, scrawled in lead pencil on the square of paper attached to the dead man's breast. It said:

NICK CALDWELL
KING OF THE RUSTLERS
LET OTHERS BEWARE

As he read the name Caldwell, Bertram uttered an exclamation. It was the name of the girl he had met at the start and again at Denver. Probably he was the girl's father. In the bitterness of his heart Bertram cursed Swingley and the expedition. Then, his attention being attracted by some papers, the edges of which peeped from the man's belt, Bertram drew the documents forth.

There were two letters addressed to Nick Caldwell. Glancing through them in the hope of finding something more concerning the man's identity, Bertram gave a whistle of astonishment.

The letters indicated that the recipient, while ostensibly favoring the cattle rustlers, was in reality working for certain great cattle interests.

But, if Swingley and this slain man had been associated on the same side in this great war of the range, how had it come about that the leader of the expedition had been so determined to kill his confederate? Was Swingley unaware that Caldwell was really working for the cattle interests, or had some personal feud arisen between the two men?

"Probably it's a case of wheels within wheels," thought Bertram. "Maybe this man Caldwell threatened Swingley's leadership. Or it may be that

Caldwell was not so much on the cattlemen's side as these letters indicate, and the word was given to Swingley to get him first of all."

Dropping on one knee beside the body Bertram glanced over another paper, which he had taken out with the letters. It was in the form of a diary, loosely scrawled on several sheets of paper. It was a brief account of the fight which had just taken place.

"By George! this Caldwell was a cool one," thought Bertram. "He found time to jot down a story of the fight, while he was standing off that bunch."

The opening entry said:

Five-forty—The fight's on. They've got Nate Day—shot him, as he stepped out after water. I can see from the window that he's stone dead.

Then followed entries in which the writer told of the fight as it progressed. He mentioned wounding or killing four men, and he told of bullets that whistled through the windows and loopholes, yet did not hit him. The final entries read:

Eight-fifteen—They're bringing out some kind of a go-devil on wheels, with an armored front. I can't see the men behind it, and bullets don't go through the iron. I guess I'm done.

Eight-twenty-five—They've set fire to the cabin. Threw straw out from behind that go-devil. Curse the man that made that, anyway. I might have had a chance if it hadn't been for him.

Eight-thirty-five—The roof's afire. I've got to make a run for it. If I can make the gulch I may get away, but the chance is slim. Good-by all.

Bertram did not put the diary in his pocket with the letters. He thrust the rudely scrawled notes back in the man's belt, and he left undisturbed the notice which Swingley had pinned to Caldwell's breast.

Still kneeling beside the body, Bertram for the first time thought about himself. Should he go or stay? No doubt the whole countryside was being aroused, and men would soon be flocking along the trail of the invaders. It would not do to be found at the scene of the fight, but would he be better off anywhere else? He was a stranger in a hostile land. He had entered the country as one of a band of armed invaders, and it was not likely that any explanations he might make would be heeded. Hot-headed men, intent on vengeance, would not hesitate to shoot him down at sight. He smiled ruefully, as he thought of Arch Beam's words: "The people in this country will scalp you alive!" No doubt Arch was right. But, if he was to be killed,

it would be better to meet death on the open road, rather than at the scene of a crime so despicable.

As Bertram was about to rise to his feet a rifle cracked from across the clearing, and a bullet tore through the young Texan's left shoulder. Although the shock of the impact spun him half around, Bertram struggled to his feet. His heavy revolver was drawn with amazing celerity, and he was about to empty the weapon in the direction from which the shot had come, when he heard a cry in a girl's voice.

At the same time the thicket parted. As the young Texan stood with feet firmly planted, in spite of the intense pain that racked him, while his finger almost pressed the trigger, Alma Caldwell came running toward him.

CHAPTER V

A RIDE TO SANCTUARY.

The Texan had only a confused idea of the events that followed immediately after he had been shot. He knew that the wound was serious, for the impact of the bullet had fairly staggered him. Yet he managed to find his feet steadily enough, and the young woman, who ran toward him, had no idea that he was hurt.

To Bertram it seemed as if the girl floated toward him on a billowing sea of ether, instead of running swiftly, as she did, across the sparse verdure of the clearing. Also, in the young Texan's eyes, she seemed more lovely and more unattainable than before. He had caught only fleeting glimpses of her during their previous meetings, and one of those meetings had been under a very poor brand of artificial light. But now, in the bright Wyoming day, he caught the full beauty of her youthful color, the regularity of her features and her grace of movement. Her lithe figure was outlined in all its charm against the green of the thicket from which she had sprung. She had dropped her hat and tossed aside her riding gauntlets, and her spurs jingled at the heels of her small riding boots, as she ran.

"By all the gods!" thought the wounded and dazed Bertram, "this country up here was made as a background for her."

Horror and questioning were written on the girl's features, as she reached Caldwell's side and flung herself on her knees beside the body. One glance told her what had happened, and she buried her face in her hands.

Meantime Bertram's wavering attention had been attracted by another figure, following closely behind the girl. It was the figure of a youth, hardly taller than Alma Caldwell and nearly as slender. Yet, for all the newcomer's youthfulness and slenderness, there was something so threatening in his attitude, as he approached more slowly than had the girl, that Bertram half raised his revolver. The boy, who was carrying a rifle, hesitated a moment, as if to bring the weapon to his shoulder.

"Stop!" said the girl, looking up. "Jimmy Coyle, put down that gun. You had no business to fire in the first place, without my telling you."

“So that’s the person who shot at me, is it?” asked Bertram, lowering his weapon and turning toward the girl. “I’m glad you’ve stopped him from doing it any more, as it seems to me there’s been quite enough shooting around here to-day.”

The spreading crimson stain on the young Texan’s shirt front caught the girl’s eye. With an exclamation of concern she rose to her feet.

“It’s nothing worth bothering about,” the Texan said. “You’ve got sorrow enough on your hands, for I take it this man must have been your father. I just want to tell you that I don’t—I don’t——”

Bertram intended to say that he did not take her advice about quitting the expedition in Denver, and he had therefore been compelled to do so when it was a matter of more personal difficulty, but the words refused to shape themselves. The young Texan wiped the cold beads of agony from his forehead. His words came haltingly, and he swayed and fell in a faint beside the body of the man whom Swingley had dubbed the “king of the rustlers.”

The touch of cool water on his forehead revived the young Texan. He was lying on his back, with his head comfortably pillowed on a rolled-up blanket. He was in the shade, and the branches of a tree waved between him and the sky. Then he found himself looking into the face of Alma Caldwell. He thought it was much pleasanter than looking at the sky or at trees, and he did not even blink for fear the vision would vanish.

The girl smiled at him faintly and said: “Your shoulder—how does it feel? Do you think you can ride?”

Bertram felt of his shoulder. To his surprise it was neatly bandaged, and the stained part of his shirt had been cut away. The numb sensation was gone from his side. He sat up.

“I’ll be all right in a minute,” he said. Then he saw that he was down by the spring, where the first man at the cabin had started to go when the work of assassination began.

“How did you get me down here by the spring?” asked the Texan.

“Jimmy carried you down,” replied the girl. “He’s strong. Of course I had to help him a little.”

The events of the morning rushed into the Texan’s memory. Again he saw the beleaguered cabin, heard the firing, saw the slain men. “Your father?” he asked. “What’s become of his body? I must help you with it. And the other man who was killed?”

“There’s nothing to do. After we brought you down here and fixed up your shoulder, some men came—men we knew. They took Nate and my stepfather—for the man you saw killed wasn’t my father, as you thought—and have arranged for their burial.”

“Why didn’t the men find me?”

“None of them came down here, and we didn’t tell them there was any one at the spring. They were in a hurry to get on the trail of the invaders. Other men will be coming from every direction. The whole countryside is being aroused. The ranchmen are furious, and there will be more fighting. Oh, why couldn’t I have arrived in time!”

“How could you have stopped it?” asked the Texan.

“Easily enough. I could have had such an army of men at the railroad that the invaders never would have come this way. I was visiting near the station, where I first met you. It was my stepfather’s old home. I received a hint of the invasion when it was being planned. Finally, a day or two before the invaders started, I learned the whole truth—that Swingley was raising a body of freebooters under the guise of punishing rustlers. I wrote, and then I telegraphed. Then I thought that probably neither my letters nor my telegrams would be delivered. I determined to come in person, and I expected to arrive ahead of Swingley’s train, if it were possible.

But every effort was made to stop me. I was robbed of my transportation, as you know, and I would not have reached Denver if you had not helped me.”

“They didn’t bother you after you left Denver, did they?” asked the Texan.

“I was called from the train at a little station, not far from the end of the line. The station agent said he had a telegram for me. Then he said he could not find it—that he must have been mistaken. Meantime the train would have gone on without me, if I had not been watching for such a move. I frightened the conductor by telling him that I knew there was a plot to get me off the train. He did not dare try any more such tricks, and I reached the terminus. The telegraph agent there did not know about any of my telegrams. The place was full of strange men, and I saw the wagons there, ready for the use of the invaders. I tried to get a horse, but the town was practically under martial law, with one of Swingley’s lieutenants in command.

“I could get nothing in the way of a conveyance. I went to the hotel, where I had put my hand baggage, and I changed to my riding dress, thinking that I would be ready when the opportunity came. I heard the invaders’ train, as it came in, and then the horse train. I saw the preparations for the start. I knew they were setting out to kill relatives and friends of mine. I thought I would go out to plead with Swingley to give up the expedition, but I was stopped at the foot of the stairs and given to understand that I was a prisoner in the hotel. Nobody offered to molest me. I saw the men start out—you with them. When they had gone some time the hotel proprietor brought in Jimmy, my cousin, who had been concealed in the barn. He found horses for us, and we followed the trail of the invaders. Evidently Swingley did not care to detain me further, after he and his men were on their way.”

“He didn’t think he would be held up here at this cabin so long,” observed Bertram.

“My stepfather made a great fight,” said the girl, her eyes glowing with pride. “There was not a better shot in the State than Nick Caldwell.”

“He was a brave man, too,” said Bertram, “brave and cool. In fact, he was the gamest man I ever heard of. Did you find the diary that was in his belt? I glanced through it, just before you came. Any man who could write that under fire has my admiration.”

“Yes,” responded the girl, “and it shows that they would never have beaten him if they had not used unfair means. Whoever made that go-devil was the means of killing my stepfather. I’ll find out who it was, and that man shall pay and pay!”

The girl’s eyes flashed, and her hands clenched. Bertram did not tell her that he had been called upon to fashion the go-devil in the first place, and that he had destroyed it, only to have it refashioned by some one else. Nor did he say anything about the letters which he had found on Caldwell’s body, which indicated that the “king of the rustlers” was identified with both sides in the range war. Those letters, the Texan made sure, were still in his pocket, undisturbed. He did not want to destroy the girl’s faith in her stepfather, after her heroic efforts to save him.

The conversation was interrupted by the youthful Jimmy Coyle, who, with his rifle still clutched in his right hand, came scrambling into the hollow from the clearing, his flapping leather chaparajos looking absurdly wide for his slim and boyish figure.

“We’ve gotta git outa here,” remarked Jimmy, without preliminary words of any sort. “You can’t tell what side’s goin’ to stray in here next. The invaders might even be comin’ back.”

“You’re right, son,” replied the Texan, getting to his feet. “It’s dangerous for you to be here with me. If you’ll just bring my horse down here where I can get him, I’ll be obliged. Then you folks had better be riding on.”

“You’re going with us,” replied Alma.

“Where?” asked Bertram. “There’s no place in this part of the country where they won’t hang my hide on the barn door, after the thing that’s happened right here.”

“Yes, there is. We’re not all savages here. I don’t dare take you back to the home ranch, up Powderhorn River, but Jimmy and I have a hiding place all arranged for you, where it won’t be necessary to explain things to folks.”

“Yes, I reckon most people here will be inclined to shoot first and listen to explanations afterward,” said Bertram. “But you can’t afford to put yourself in a questionable light by sheltering one of Swingley’s rustlers. I can’t hide the fact that I’m a Texan.”

“Nobody wants you to,” answered the girl with a smile. “Jimmy will have the horses at the edge of the draw in a moment, and we’ll start on a nice quiet trail back into the hills, where we won’t meet a soul.”

“But—but I haven’t any claim on you,” stammered Bertram.

“Oh, yes you have—two claims. Didn’t you help me on my way, once when I started home, and once in Denver?”

“But those things didn’t amount to anything. And you know I came in here with this invading crowd that killed your stepfather. How do you know that I didn’t have a hand in shooting him?”

“Those things can be straightened out later. Right now you’re badly hurt, and the one thing is to get you cared for.”

“That’s putting it impersonally enough,” ventured Bertram.

“Why should I put it otherwise? I wouldn’t leave even a known enemy under such circumstances, and I don’t know that you are an enemy—not yet.”

The young Texan smiled quizzically. “Since you put it on that basis,” he replied, “I’ll accept your offer. I admit that I’m too wabbly to put up much of an argument with any man who might stop me, orally or with a gun.”

Just how “wabbly” Bertram was, he did not comprehend until he had climbed to the top of the draw, where Jimmy had brought the horses. Even though Jimmy assisted him on one side and Alma on the other, he had difficulty in negotiating the steep trail. But he managed to get into the saddle without aid.

“It’s queer how just the grip of a saddle horn puts life in you,” he remarked, as they started out of the clearing, with backward glances at the still smoking cabin. “That’s a right smart gun you’re carrying, Jimmy. I never got a worse knock in my life.”

“It’s only a .38,” said Jimmy modestly, though a flush of pride overspread his freckled features at this tribute to his weapon and his marksmanship. “It’s jest drilled a little hole in you, as far as we could see when we was bandagin’ you up. Purty quick I’m goin’ to git a .45. If I’d have been packin’ the gun I want, it would have torn your whole shoulder off.”

“Well, I’m glad you’re still sticking to small horses,” replied the Texan genially. “You and I are going to be on a permanent peace footing before you get that .45. I reckon I’ll take no further chances with you.”

Jimmy’s reserve and suspicion had melted away before they had more than caught a last glimpse of the cabin smoke through the trees on the foothills. He chatted with the Texan, who did not indicate, by word or facial expression, how much pain the journey was causing him, even though the horses went no faster than a walk.

To Bertram’s disappointment Alma Caldwell rode ahead, apparently with a view of being the first to meet any travelers on the trail. But the little procession continued on its way for two hours or more without meeting any one.

“It’s lucky we didn’t go by the main road,” said Jimmy, “or we’d have been stopped every mile or so. I’ll bet every man in the county is in the saddle now. But leave it to Alma to find a way out of a difficulty. She’s a wonder, but”—here Jimmy’s voice sank to a confidential murmur—“I’m goin’ to skip off and help fight these invaders, as soon as we git you took care of at Uncle Billy’s.”

“Who is Uncle Billy?”

“Oh, he belongs to the Coyle side of the family—the side that I’m from. Only he ain’t a fightin’ man like the rest of the Coyles and all the Caldwells.

He jest believes in lettin' everybody do what they want—and the animals, too. He's queer, but everybody likes him, and you'll be safe there because nobody bothers Uncle Billy. There's his place now."

The Texan, who was wondering how many rods farther he could ride without falling from the saddle, looked ahead, past the slim figure of Alma Caldwell, and saw a tiny cabin nestled in an opening in the pine forest. In the doorway stood a tall, white-bearded man, watching from beneath a shading hand.

CHAPTER VI

SWINGLEY HAS HIS SAY.

The young Texan's life during the next few days was in striking contrast with what had gone immediately before. He had a confused recollection of sinking to rest on a comfortable bed, in a room filled with the forms of animals—elk, deer, bears and smaller creatures, all in most lifelike poses. There were even some shaggy buffaloes in a perfect state of preservation. In small glass cases were groups of insects, and there were some giant trout on the wall, evidently taken from near-by lakes, or from the alluring stream which ran close to the cabin.

Bertram's recovery, under the ministrations of Uncle Billy and Alma Caldwell, was rapid. In a few days he was able to walk about the place. The inflammation left his shoulder and his strength returned to him, as it always returns to healthy youth in the great outdoors.

The old naturalist proved a delight to Bertram, and he was both expert and gentle in applying surgical dressings. Alma accounted for his skill by explaining that he had studied to be a surgeon.

"But he had no real taste for the profession," said the girl. "What he wanted was to live close to the heart of nature, to study wild life at its source. So he moved here, when the rest of the family came, and, after a few years of ranching, gave up everything else and settled down in this little place in the mountains, determined to follow out his ambition."

The girl had ridden over to Uncle Billy's place from the Caldwell ranch, and she was walking about in the bright sunshine, while the Texan stood in front of the naturalist's cabin.

"Well, I can testify that if Uncle Billy had turned surgeon he would have made a success of his calling," said Bertram, stretching his arms above his head, in the joy that a strong man feels when convalescent. "He's fixed me up more quickly than I would have thought possible. Your fighting cousin's bullet, it seems, just nicked the top of a lung. Luckily it drilled me clean and did not shatter a bone, or I might have been on Uncle Billy's hospital list a long time."

“This was the only place to bring you,” said Alma. “The one practicing physician and surgeon in this part of the State lives twenty miles from where you were hurt, and he had taken his rifle and joined the men who were opposing the invaders. I couldn’t have taken you to any ranch house without your presence being known elsewhere, on account of all this excitement. Neighbors are visiting everywhere, and any one who had sheltered a stranger at this time would have come in for general suspicion. But, unless somebody deliberately sets out to trail you, no one will be likely to know you are at this place. It is known that Uncle Billy is opposed to the taking of human life, and that he could not be enlisted in this dispute on either side.”

“Well, Swingley and Tom Hoog will soon be on my trail,” observed the Texan. “I’ll not stay here any longer than I can help, on Uncle Billy’s account. Also on your account,” he added, “as it is not going to do you any particular good to have it known that you helped one of the invaders to safety. People are going to grow more bitter than ever, now that Swingley and Hoog are dominating things in such high-handed fashion.”

“High-handed is a mild term for what they are doing,” replied the girl, her eyes flashing. “They are trying to set up a despotism for the big-cattle interests. After they shot my stepfather and Nate Day, at our little ranch house on the Powderhorn, and had burned the cabin they found the settlers opposing them just the way the farmers opposed the redcoats at Lexington. Things were made so hot for Swingley and his men that they had to fortify themselves in a ranch house, several miles from their objective, the county seat at Wild Horse. They were besieged two days and would have been captured to the last man, if United States soldiers hadn’t intervened. The invaders were taken to Wild Horse under military escort, but it wasn’t ten hours before every one of them was out under bail.”

“There must be bigger men than Swingley mixed up in it,” observed the Texan.

“There are, of course—the biggest cattle interests in the West. But they haven’t shown their hand, and Swingley apparently does just as he pleases. He has headquarters at Wild Horse, with a big bodyguard of fighters, led by Tom Hoog, ready to do his bidding. The rest of the invaders have been scattered among the big-cattle ranches, presumably as cowboys, but really as fighters. It looks as if the trouble had only started.”

The girl's voice was lowered, but took no new intensity of expression as she continued. "Everybody thought there would be open war in Wild Horse, when my stepfather and Nate Day were buried," she said. "But the ranchmen made such a showing then that even Swingley seemed to be overawed for the moment. Wild Horse never was so full of armed men. But the ranchmen were determined that, if there was trouble, they would not be the aggressors. They crowded the little church, where the services were held, and scores of them stood outside. Everybody was heavily armed. When the funeral procession went through the streets, with all those grim, determined-looking men, riding so silent, with their rifles across their saddles, it was terrible!"

The girl bowed her head in her hands. The young Texan wanted to take her in his arms. For first time it came to him, fully and undeniably, that he was in love with this slim, dark-haired young woman whom chance had thrown across his trail. Only the Texan did not call it chance. He wanted to tell the girl that it was Fate that had caused their trails to cross and recross. They had seated themselves on the tiny porch that shaded the front doorway to the cabin. Giant pine trees crowded in friendly fashion about the few acres which the naturalist had cleared. Over the tips of the biggest pines could be seen the white hoods of the mountains. Across the circle of blue sky, that compassed the clearing, drifted masses of white clouds. From the forest came the indistinguishable murmur, that went on always, mingled with the sound of the trout stream, which had first lured Indians and then white men along its course.

"I'll be going away from these parts in a few days, Miss Caldwell—Alma," said the Texan. "I reckon I might complicate matters if I stayed here, particularly as I don't want to bring any trouble on you or your folks, because I was one of Swingley's crowd. But I don't want to have you forget me. In fact I just don't intend to let that happen, because it would be a calamity, as far as I'm concerned. I might as well tell you that I fell in love with you the first time I saw you, and I fell deeper in love in Denver, and, since I've been seeing you up here, it's just been a case of being lost hopelessly."

The Texan put his hand over the slender fingers that covered the girl's face. The girl did not draw her hands away, and he drew them down slowly. Her eyes, still wet with tears, were wide and startled. The Texan felt her

slender frame tremble. Then her expression changed, and she pushed his hand away, laughing her musical, rippling laughter.

“What suddenness!” she exclaimed. “And yet we Northerners have always felt that you Southerners are rather deliberate in all things.”

The Texan smiled as he rose. Something in that first glance, which she had given him, told him that his cause was not lost.

“Not in love or in war,” he said. “Nobody ever accused us of being deliberate in those things.”

“Well, apparently there’s too much war in the atmosphere around here, just now, for any other sentiment to flourish,” retorted the girl.

“Nothing can supplant real love,” said the Texan. “It’s thrived during centuries of wars. I’ve said my say, and, before I leave this part of the country, I’m coming for my answer.”

“Well, I answer all civil questions and some impertinent ones,” replied Alma. “Maybe I’ll answer yours in the latter category. But, anyway, it’s lucky you’ve put off getting your answer, for here comes Uncle Billy.”

The tall figure of the naturalist could be seen coming across the clearing. He seldom rode, and this habit alone would have condemned him as mildly insane, in a country where men were known to mount their horses rather than walk across a road. But there was not any part of the high hills that the naturalist had not covered in his daily prospecting for whatever treasures the forest might yield. In his later years he cared nothing about killing wild animals. He had secured a mounted specimen of every species of game, even to the final survivors of the wild bison, and now all that interested him was to observe the wild creatures in their haunts.

“Mr. Bertram says he is going to leave us, now that he considers that you have cured him, Uncle Billy,” was the girl’s greeting.

Uncle Billy paused, his face showing keen disappointment. Although his rough clothes hung loosely on his gaunt frame, there was a certain dignity in his movements that never failed to impress. His gray eyes, under their shaggy brows, were kindly, as they turned to the Texan.

“I’m sorry,” said the naturalist. “I had hopes that you could finish writing out those notes for me.”

He alluded to some secretarial work, which Bertram had started during his illness, the transcription and arrangement of valuable, but scattered, notes which the naturalist had made.

“I’ll come back and finish that some day, when all this range trouble is over,” said the Texan. “I think it’s better for me to go before any one finds where I’ve been hidden. It’ll save trouble for those who have befriended me.”

Before the naturalist or the girl could answer, the faint sound of hoofbeats came to the ears of the little group. The sound was irregular and rapid.

“Somebody’s coming fast,” said the Texan. “It’s more than one in the saddle, from the sound. I reckon I’m not going to make my get-away without being seen, after all.”

“Let us hide you,” said the girl.

“It wouldn’t be any use. There’s too much of my truck scattered around, and there is my horse in the corral.”

“You have no weapons with you.”

“No use anyway,” was the mild answer. “I wouldn’t desecrate Uncle Billy’s peaceful abode by doing any shooting here, and I don’t believe any one else will.”

The hoofbeats grew louder, and Alma and the Texan exclaimed in unison, as two horsemen dashed into the clearing: “Swingley and Tom Hoog!”

The leader of the invaders and his lieutenant came at breakneck speed, reining their horses up with a sharp jerk beside the waiting group. Swingley grinned in triumph, as he gazed at the Texan. Hoog, with perpetual malice written on his long, saturnine features, looked on impassively from the saddle.

“Well, we didn’t know what your trail was goin’ to bring us to,” said Swingley, addressing Alma. “We’ve followed it since you left your ranch, but it’s been worth the trip for us. We didn’t have any idea of findin’ our fellow invader, Milt Bertram, here. I s’pose Uncle Billy has been holdin’ you here against your will, ain’t he?” asked the leader sneeringly.

“I didn’t write out my resignation when I quit your outfit at the Powderhorn Crossing,” said Bertram, sitting down on the porch and lighting a cigarette, “but you knew I’d resigned.”

“You hadn’t ought to have done it, boy,” said Swingley. “You ought to have stayed with us. It didn’t seem to pay you to quit us, for it looks as if you’d been havin’ a struggle of it.”

“He was shot in the shoulder when he was brought here,” observed Uncle Billy. “A few more days will find him as good as new.”

Swingley’s face showed genuine astonishment. “Somebody got ahead of Milt Bertram on the draw! Well I’ll be dashed!” he exclaimed. “I wouldn’t have believed anybody could have done that, unless it might be Tom Hoog, here.”

“Or mebbe yourself,” put in Hoog.

“Oh, well, count us as equals,” went on Swingley. “But somebody must have got Milt from ambush.”

“Well, you know a lot about ambushes,” observed Bertram calmly. “Especially about throwing blazing straw from iron ambushes, I might say.”

Bertram was not certain that it had been Swingley who had been behind the go-devil, who had tossed out the burning straw which had set fire to the cabin. His chance shot told, for Swingley’s brows darkened.

“That’s no kind of talk from you, Bertram,” he said. “Remember we count you one of us. If you don’t come with us, some one of these rustlers will shoot you before you get your horse’s nose turned out of this country.”

“You know when and where I quit, and add to that knowledge by telling you why I quit,” pursued the Texan. “It was because I didn’t intend to be a party to a deliberate murder, such as you and those with you committed, there at the Powderhorn Crossing.”

Swingley pursed, and Hoog made a motion to draw, but the leader of the invaders held up a warning hand.

“No shootin’ to-day, Tom,” he said. “This young cub is goin’ to listen to reason. I know what’s the matter with him. He’s fell in with Nick Caldwell’s stepdaughter here, and he wants to throw in with the rustler faction, thinkin’ that that’ll help him along with his love affair. But listen here, young lady, and you, Uncle Billy, who have been harborin’ this youngster. It was Milt Bertram who made it possible for us to burn out Nick Caldwell at the Powderhorn ranch. If it hadn’t been for Milt, here, we wouldn’t have had the go-devil made, the thing that made it possible for us to get right up to the cabin. I believe Nick would have stood us off all day if it hadn’t been for that thing. Do you deny that you made a go-devil for us, Milt?”

Bertram felt that the girl’s questioning eyes were turned upon him, but he made no sign.

“See, he don’t dare say no,” said Swingley, “because he’d know he wasn’t tellin’ the truth. He belonged to us at the start, and he belongs to us now. You know where to find us, Milt, when you’re well enough to ride. And I’m advisin’ you to come right back to the reservation and be a good Indian, if you don’t want trouble. We may want you to make another go-devil for us.” With a laugh Swingley turned his horse and dashed away, Hoog following.

Bertram threw away his cigarette and stood up.

“Why didn’t you tell him it wasn’t true?” asked the girl.

“I didn’t think it was necessary,” said the Texan.

“Then I’m to assume that it was true?”

“I can’t help what folks assume.”

The girl turned away and began gathering up her horse’s trailing reins. “You need never come for that answer,” she said, “and the sooner you go away from here the better.”

“I’ll come for the answer, and it’s going to be a favorable answer, too,” replied the Texan. “Furthermore I’ve changed my mind. I’m not going away, but I’m going to try homesteading on a little land I’ve got picked out, up the creek. I’m going to settle down and be a citizen here, and I want you to treat me like a good neighbor.”

The girl did not answer, but, swinging lightly to the saddle, dashed away from the cabin.

The Texan watched her until she disappeared down the trail that made a short cut to the Caldwell ranch. Then he said: “We’ll have plenty of time to finish the job now. Let’s go in and work some more on those nature notes, Uncle Billy.”

CHAPTER VII

THE MASKED HORSEMAN.

Alma Caldwell assumed the burden of managing Nick Caldwell's ranch. She was the only heir of the man who had been dubbed by his slayers "the king of the rustlers," but who, as Bertram had discovered, had some prominent connection with the other side in the cattle war.

Most of the Caldwell cattle were running in the hills, mixed with the stock from other ranches in the neighborhood. Comparatively little of Nick Caldwell's ranch was under cultivation. Like most other ranchers in that part of the State he contented himself with raising enough alfalfa for his saddle stock and a little winter feeding, in case of an unusually severe season. But for the most part it was "horseback farming" that was practiced everywhere.

Alma's day was largely spent in the saddle. With her, as a small, but valiant, bodyguard, went young Jimmy Coyle. There was only one point of difference between the cousins, and that was Alma's dismissal of Milton Bertram. Jimmy not only stood up for the Texan, but visited him frequently during the remainder of Bertram's stay at Uncle Billy's. Also it was Jimmy who came to Alma with the first news that the Texan had made good his words, and had located on a homestead.

"It's up at the headwaters of the Roaring Fork, 'way up above Uncle Billy's," said Jimmy. "Milt's got a cabin all built, and he's took on a pardner, a cowboy named Archie Beam, from Swingley's outfit. Beam couldn't stand Swingley's goins on, so he and Milt have hooked up together. They've got some good range right back of 'em, and Milt's goin' to have some cattle drove up from Texas, and I'm bettin' they make good, right from the start."

Alma refused to show any interest.

"I don't see why you're mad at Milt Bertram," went on Jimmy. "He's a dandy, I think. And say, I never saw anybody shoot the way he can. He's that quick with both hands. I can see now that it was only fool luck that kept me from bein' filled full of lead, after I had plugged him in the shoulder that

time. He never asks about you, but I know he wants to hear all about what luck you're havin' at ranchin'. I've told him as much as I could about things here, specially about the cattle you've been losin' lately."

"I'm sure there are at least fifty more gone from that bunch over on Devil's Head," said Alma. "The other ranchers around here are sure they are losing cattle, anywhere from ten to fifty head at a time, but they can't seem to catch any one at it."

Alma was soon to learn, however, that Swingley was not to be content with getting cattle by means of occasional raids.

The ranchmen throughout the county were served with notice that the newly organized Cattlemen's Association, of which Swingley was ostensibly the head, intended to put in effect a series of district round-ups. All cattle were to be gathered and inspected, and unbranded cattle, or any livestock that carried suspicious-looking brands, were to become the property of the new organization.

No sooner were the notices served than the round-ups were organized, all manned by Association men. The cow-punchers, who had made up the invading army, which was now spoken of only in terms of hatred and contempt by the small ranchmen, were scattered about in small, but aggressive, delegations, with the different round-up wagons.

Swingley himself captained the round-up outfit that combed the Powderhorn Valley, from its wide reaches on the plains, to the final ranch in the foothills.

When the riders had gathered the cattle from the vicinity of her ranch Alma was dismayed at the smallness of her herd. Fully half of Nick Caldwell's cattle had been spirited away. Swingley, as sole judge and dictator, when the inspection of brands was going on, threw at least half of the remaining cattle into the Association's pool.

"It's an outrage!" protested Alma. "There's no question about the validity of all those brands you've claimed."

"You don't know nothin' about the cattle game, young lady," responded Swingley callously. "Every brand I've claimed was made with a runnin' iron. Nick Caldwell's title of the 'king of the rustlers' was well earned. And it'd be better for all who sympathized with him if they moved out of this country, without standin' on ceremony," added the rustler significantly. "We're not through with 'em yet."

The girl did not lose the general meaning of the threat, but at first she did not get its full import. A few weeks later she learned what Swingley had meant. Immediately after the completion of the Association round-ups, which resulted in many thousands of cattle being seized from small ranchers by the big cattle interests, there began a series of assassinations which soon had the entire countryside terrorized.

One ranchman after another, who had been identified with the opposition to the big cattlemen, was shot down by a mysterious rifleman. It was apparent that the work was done by one person, yet the shootings occurred at such divergent points of the compass that it seemed impossible that a single rider could cover so much ground in such a short space of time.

Two bachelor brothers, who conducted a small ranch on one of the tributaries of the Upper Powderhorn, were shot dead, as they sat at their evening meal, the assassin firing, with deadly accuracy, through the open window. To the cabin door was attached a paper, on which was printed in rude letters: Rustlers, Beware!

A day after this double murder the county was thrilled by the news that Fred Hersekorn, a prosperous ranchman in another part of the valley, had been shot, as he was riding home after a trip to Wild Horse. The ranchman was murdered almost at the door of his home. His wife, who had rushed to the yard at the sound of the shot, had found her husband shot through the head. It was dusk, but she descried a horseman riding across the prairie, on the opposite side of the road. The rider turned with a defiant wave of the hand, and the woman saw that he wore a black mask, covering the upper part of his face.

On a tree beside the driveway leading to the ranchman's house was found a sign similar to that posted on the cabin of the assassin's victims on the Upper Powderhorn.

The countryside was terrorized, the feeling of helplessness being intensified because the sheriff was notoriously indifferent to anything that was not to the best interests of the big cattlemen. Men were afraid to meet on the main-traveled roads. When a traveler saw another traveler approaching there was a mutual survey at long distance. Then, to make assurance doubly sure, each horseman usually made a detour. Men did not stir outdoors unless they were armed. Curtains were put up at ranch house windows that had never previously known such obstructions to the light.

In spite of the fact that hundreds of ranchmen were searching for and laying traps for him, night and day, the visitations of the masked horseman went on. Arson was added to his crimes, as he burned the ranch of a newcomer on Lone Lake Mesa, after shooting the homesteader, as the others had been shot. Again men examined the mysterious square of paper, with its poorly printed message of warning.

Milton Bertram and Arch Beam, on the headwaters of the Roaring Fork, the stream which later on foamed past the naturalist's cabin, felt that only extreme vigilance could save them from being victims of the assassin. They went cautiously about their work each day and seldom exposed themselves to fire from the points of attack that covered their cabin, without first making reconnaissance.

They felt that their caution was not misplaced, when, on two occasions, they found pony tracks in the thickets that commanded unobstructed views of their homestead.

"That feller is a real rifleman, whoever he might be," observed Arch Beam. "He never shoots until he has his man well covered. But some day he's goin' to slip up, and a better man than he will do the shootin' first."

"I hope that time isn't far off, Arch," returned Bertram. "There's no use fooling around in the open with an enemy like that, a man who won't even give you as much warning as a rattlesnake gives before he strikes. He'd simply add you to his victims, as easily as you might mark up another point on a billiard string. A man like that has to be caught off his guard. He knows there are plenty of men looking for him in the open, and that's why he's not going to be caught there."

"Where are you goin' to get him, then?" asked Archie doubtfully.

"I don't say I'm going to get him," responded Bertram. "But whoever does get him will probably land his game in some totally unexpected place. Wild Horse wouldn't be a bad place to look. I think I'll drift around there a little more than I have been."

Bertram followed out the hint he dropped to his partner. He rode to Wild Horse, where he had seldom been seen since he and Archie had taken up their homestead.

Wild Horse was typical of the towns of the frontier. Most of its one-story business houses were spread along both sides of a broad street. There were a few general stores, two banks, a hotel, several restaurants, and numerous

saloons and gambling places. All were prosperous, and, while the sun might cease to illumine Wild Horse at evening, there was plenty of light there, of an artificial kind, till well along toward the next daybreak.

The topic of conversation in Wild Horse, as everywhere else, was the work of the masked horseman. But here the comments were a little more guarded, on account of the feeling that some inside ring of the cattle interests was prompting the assassinations, and Wild Horse was headquarters of those interests, which fact Swingley did not allow to be forgotten for a moment.

Bertram had hardly seated himself in the hotel restaurant before Swingley saw him and came over to his table. "Milt," he said, "you're too good a man to be wastin' your young years on a hopeless homestead proposition like the one you've got. If you've come up here, prepared to listen to reason and to throw in with us again, I can put you where you'll be on the road to a fortune in the cow game."

"I'm glad it's the cow game and not making go-devils," said the young Texan, as he poured his coffee with a steady hand.

Swingley smiled saturninely. "I've got it figgered out what's turned you wrong," he said. "When you first agreed to go along with us you didn't have any particular idee of kickin' over the traces, did you?"

"Maybe not."

"Well, you met this girl, and then you got some foolish ideas in your head. As a matter of fact the killin' of Nick Caldwell wasn't nothin' for you to be sore about, as Nick deserved what he got. It is true he was good enough to that stepdaughter of his, who took his name, and who looked on him as a father. But he was the leader of the rustler crowd."

"I don't know whether he was or not," replied the Texan, with a keen glance at Swingley. "I've sort of drawn some conclusions of my own to the effect that Caldwell was really a power with the cattle interests, though maybe only a little inside circle knew what he was doing. He might have had a falling out with a big man in that inside circle. Maybe that other man was jealous of Nick's power."

Maybe Nick had some information about the other man's crookedness. Anyway, the other man figured that Nick had to go. So there wasn't any powder spared in getting him when the chance opened up."

Swingley turned pale with rage, but he choked back his inclination to denounce Bertram.

“Do you mean to say that I was mixed up in any deal with Nick Caldwell?” he demanded.

“I said it looked as if some other man was, that man being in the confidence of the cattle interests,” responded the Texan coolly. “I didn’t say it was you, but it might have been. Do you want me to spring any documentary evidence I might have?”

“Do you mean you’ve got letters, papers of any kind?” Here a note of anxiousness crept into Swingley’s voice.

“You had it right the first time. There are some letters of interest, and I want to tell you to quit your high-handed persecutions in this county, or they’re going to be made public.”

“That girl’s turned ’em over to you, if there is anything of the sort,” said Swingley, his face working convulsively, his voice thick with anger and fear.

“The girl has had nothing to do with it,” responded Bertram. “But she’s one of the people around here that you’ve got to let alone from now on.”

“I’ll let nobody alone,” said Swingley, liquor and his anger getting the better of his tongue. “There ain’t enough left of her herd now for her to make a living with, but there’s worse in store for her, if she don’t clear out of the country. As for you, you’re a marked man, and you won’t be safe till you’re on the other side of the mountains.”

“Better not have me marked too plainly, Swingley,” observed the Texan. “I’m not fool enough to carry those letters on me, you know. I’ve left them where they’re sure to come to light if I’m killed. So call off the man who’s been prowling around our cabin lately, and tell him to pack his guns elsewhere. Speaking of gunmen, there’s Tom Hoog looking for you.”

Swingley looked around, just as Hoog came through the doors leading from the hotel office to the restaurant.

“Oh, yes,” he said, “Hoog’s been around all the afternoon. Here I am, Tom,” he called to his retainer. Then, as Hoog beckoned to him, Swingley rose and added:

“I’ve been talkin’ kinda strong, Milt, because I’ve had a little more liquor than common. I ain’t given that way as a rule, so fergit what I’ve been sayin’. Think over that offer I’ve made you. It’s good as gold, and all

you've got to do is reach out your hand and get a fortune. I'll have you set up in an ideal grazin' country, with a smackin' big herd of your own, inside of a month."

"I wouldn't take any range, nor run any cows that came to me by way of you and Hoog, if the cattle were all prize-winners, and the grass on the range was belly-deep, all the year round, and the weather was always June," replied the Texan.

Swingley turned, as if to make a heated answer, but Hoog's voice came insistently: "Ace, come here. Here's news!"

The cattleman joined Hoog, and the two walked through the swinging door together. Every one else had gone out of the room but Bertram. He rose, troubled in mind about the threat Swingley had made concerning Alma. He turned cold at the thought that some harm might come to her.

"I never thought it, not even of such scoundrels as these!" he muttered. "Women have always been safer in the West than anywhere else in the world. Perhaps they're going to strike at her in some way that I hadn't thought of."

With his mind full of plans for the protection of Alma, Bertram left a coin on the table for the waitress and walked slowly toward the hat-rack for his battered, high-crowned felt. He intended to go right to the ranch, to tell the girl that this foolishness on her part had to stop, that her safety was now the prime consideration, and that he himself intended to enlist as a personal guard, until these troubles were over.

The Texan's reflections were broken in upon by confused voices from the hotel lobby and the barroom just beyond. He stepped through the swinging doors and almost ran into the hotel clerk, white-faced with excitement.

"Ain't that the limit!" said the clerk, as Bertram stopped him with a query. "Such a kid, too! Didn't you know about it? Young Jimmy Caldwell was found shot this morning. Another masked-horseman job. Some say the kid's dead, but the latest word is that he's alive at Uncle Billy's place, and that he may live."

As the clerk vanished, to spread the news to the rest of the hotel help, Bertram stood a moment in thought. Then the significance of one of Swingley's remarks came to him, full force.

“By all the gods!” he exclaimed, slapping his leather-clad thigh. “Swingley was careful to tell me that Hoog had been around here all the afternoon. It was an alibi he was parroting. That’s slip number one. The rest will follow fast.”

Walking swiftly to the barroom the Texan drove his arm against the swinging doors and opened them with a bang. Facing the inquiring crowd he stood looking for Swingley and Hoog. The cowboy’s attitude was tense, and his hands were close to the butts of the guns that showed low on his hips.

Swingley and his lieutenant were gone. Turning as suddenly as he had entered the Texan strode out of the hotel and flung himself on his horse.

As he sped toward the foothills, the rage, which had prompted him to kill at sight, died out of his heart, and it was succeeded by a cold determination to bring retribution to those who had committed this new crime. With such retribution would come proofs, which would satisfy others as well as himself, that justice had not miscarried.

CHAPTER VIII

THE MARK OF THE BEAST.

Little Jimmy Coyle would not ride his beloved range again for many a long month. The boy was battling with death when the Texan saw him, but Uncle Billy, who was in attendance, said, he would recover. The lad's chaparajos and the rest of his cowboy trappings were on a chair at his bedside, a pathetic reminder, Bertram thought, of the active life the boy loved. His .38 rifle, the weapon which he intended to exchange for a .45 some day, when he grew strong enough, stood at the head of his bed, and no one was permitted to handle either it or the garments. Such were the orders of the new district attorney, young Isham Woods, it was explained.

Alma had found Jimmy at the mouth of a wide moraine, leading out upon a mesa, something over a mile from the ranch house. She had thought he was dead, from a wound just above the heart, but she had found that some remnant of life remained. She had attended as best she could to the wound, and then she had carried the boy to the ranch house, the crisis giving her strength far in excess of normal.

The Texan did not tarry at the ranch house after he learned that Jimmy stood a fair chance of recovery. Following Alma's directions he rode to the scene of the shooting. The moraine afforded an admirable hiding place. In its wide, boulder-strewn depression one could command an excellent view of the mesa, on which there were always cattle grazing.

Several neighbors were going over the ground, and so was Woods, the district attorney, who had shown an unexpected and most disconcerting disposition to inquire into some of the affairs of the newly organized association of cattlemen. In fact it was currently reported that Woods, who had been figured on as a quiescent tool, had been visited several times by Swingley, with threats of the loss of his political and legal suture unless he mended his ways.

Threats apparently had no effect on the young lawyer, with whom Bertram had struck up an acquaintance which was fast ripening into friendship. Together the Texan and the district attorney surveyed the scene.

The would-be assassin had hidden behind a boulder, on the side of the moraine. His horse had been tied in a clump of asps, that grew over the side of the huge depression. There were some footprints and hoof prints, but the ground was so hard that these could be of no value. The discharged cartridge was found, but that, also, was of no value. Forty-five caliber cartridges of that character were carried by thousands of ranchmen in that vicinity.

“Miss Alma wanted me to give you this,” observed the Texan, handing the district attorney a small square of paper. On it was the customary sign: Rustlers, Beware! printed in lead pencil.

Woods examined it with interest.

“Maybe this won’t be such bad corroborative evidence,” went on Bertram, handing over the paper which he had found on his own cabin door. The same letters were printed on the paper, but the work was done in ink.

“That’s a pretty plain thumb print, down in the corner, isn’t it?” observed the Texan, noting the interest with which the official observed the new paper.

“Yes,” replied Woods. “It’s quite the best one that’s come to light, so far. Let’s go to the ranch house and see if we can find anything corroborative on Jimmy Coyle’s equipment. The assassin came out from his hiding place after he had shot Jimmy and turned the boy over, thinking he was dead. I don’t think he meant to kill Jimmy, but probably the boy saw him and opened fire, or tried to get back to the ranch to give the alarm. Probably the fellow behind the rock thought he had made a clean job of it, but he did not reckon on the vitality of youth.”

The district attorney and Bertram carried Jimmy’s clothes and chaparajos and rifle into a room adjoining the sick chamber and barred out everybody else. “I’m glad to have you work with me in this,” said Woods, “because I can’t trust anybody from the sheriff’s office, and it’s clearly impossible to take up such a case alone. I know I can count on you, right up to the finish.”

“Right up to the finish,” said the Texan grimly, “and that finish can’t come too soon.”

“I imagine it’s not so very far away,” responded the young district attorney. “These range murderers haven’t learned the advantage of working with gloves, like some of the city criminals.”

The official inspected the boy's clothing. "This shirt," he said, "must have been pretty well stained by the time the assassin reached the lad. In turning the boy over he naturally took hold of Jimmy's shoulder, and probably he got some stain from the wound on his hands. Then he'd try to straighten out the boy's legs, and in doing, that he might have come in contact with the stains on these leather chaps. It might be a good idea to take a look at those first."

The district attorney brought a small bottle from his pocket and shook some grayish powder into a paper on the table. Then he took a camel's-hair brush and began applying the powder to different spots on the leather chaparajos.

"It is what is technically known as gray powder," he explained. "It's made of charcoal, chalk and mercury. A little of it will bring out a finger print with amazing clearness. Here are some that don't belong to the boy."

Under the application of the powder several finger prints stood out clearly. Taking out the paper which Bertram had handed him, the district attorney compared the prints.

"Fate seems to have helped us out," he said finally. "It might be a matter of some time and difficulty in checking up these finger prints, under ordinary conditions. There are four general classes, known as arches, loops, whorls and composites—self-explanatory names. But there are over a thousand types, and checking up without a complete set of finger prints is ordinarily a matter of difficulty. But right here is where Fate, as I say, seems to have helped us."

The district attorney called Bertram's attention to two tiny spots, almost in the center of the thumb print, on the paper which had been attached to the Texan's cabin, and a print which the powder had brought out clearly on the leather chaparajos.

"The man that made those thumb prints might have been struck in the ball of the right thumb by a rattlesnake, at some time in his life. Anyway that is what we will assume. There are two small scars, just big enough and deep enough to change the swirl of the thumb marking, almost at the very center. Those markings, no matter what type they may fall into, never become confused naturally. In other words, those tiny corrugations never cross each other, unless by accident of an external nature. Such an accident has happened in this case. The peculiarity of this thumb print can be distinguished with the naked eye."

“Let’s see if there isn’t another on the rifle,” said the Texan. “We can’t be too dead sure about this business.”

An application of powder to the boy’s rifle brought to light several other thumb prints, showing the rattlesnake scar.

“A man who was used to handling guns would pick up the boy’s rifle just by instinct,” said the Texan. “The man that shot Jimmy picked up the lad’s .38, and he probably worked the lever once or twice, explaining the unexploded cartridges that were found on the ground. It’s second nature for a gunman to do anything like that.”

“These prints on the rifle are even clearer than the ones on the leather,” replied the district attorney.

What the official said was true. Under the magic of the gray powder a mixture of thumb prints appeared on the magazine of the rifle which Jimmy had prized so highly. Some of the thumb prints were long and narrow. Those were the marks of Jimmy’s hands. Overlapping them in some cases, and in one or two instances, standing out alone, could be seen larger, coarser finger prints. Where a man would place his thumb in the process of aiming the rifle, were two exceptionally clear prints.

In each of them appeared the tiny flaws in the configuration of the strange lines of the skin, lines which scientists have been at a loss to explain, unless, in some mysterious way, they aid the sense of touch. The flaws caused a slight interruption of the flowing, parallel lines, almost in the center of the thumb.

“Can you convict on evidence like that?” asked Bertram.

“Finger-print evidence is absolute. Some Frenchman has figured up the chances of error, and he had to get into fractional atoms before he arrived at a result.”

“How about the chances of some one else having a scar like this one.”

“There again you’ll get into the atomic fractions. Some other person might have a scar made by a blade, or a deep, jagged scar, made by a barbwire fence or something of that sort which tears instead of cuts; or there might be another person with a single small scar on the thumb, but for any one to have a double scar like this would be so nearly impossible, that you might as well throw the fractions away and say that the thing couldn’t be.”

The Texan looked thoughtfully at the comparative evidence on the table. “How are you going ahead, now that you’ve got this far, Woods?” he asked.

The district attorney looked troubled. "I know I can be frank with you," he replied. "I can't see that I'm much better off than when I started. Right now is where I need the strongest kind of help from the sheriff, and this is just the time I can't call on him. He's been indifferent, right from the start."

"Indifference is what he was put in there to show," responded the Texan. "He's simply delivering the goods to those who have hired him."

"Well, whatever the reason, I'm brought up against a blank wall. I've thought that I could enlist a little force of my own, a few men like yourself and Archie Beam. I don't want to make the mistake of getting those who are too deeply interested on the rustler side of this war, or they'd be dragging in some of their personal enemies, just to square their own accounts."

"Well, you know you can count on me," said Bertram, "but I don't reckon it will be necessary to have a whole posse in on this thing."

The young official looked surprised. "It's going to take a force of men to capture that assassin," he replied.

"That shows how little you are used to ways and means and men out here," said the Texan, with a short laugh.

"That man isn't going to be captured easily, and he's got to be wounded to be taken," he added. "One man's just as good on his trail as a hundred, provided that one man can get the drop. In fact if you go setting a whole pack of hounds on the trail of a wolf like that, all you're going to do is run him out of the country, and that isn't what's wanted, because an enemy of that sort is an enemy not of any one particular clan or neighborhood, but of all humanity. He's got to be put out of the way for all humanity's sake."

The district attorney was puzzled and inclined to be downcast.

"I'm going to help you some in this case," went on Bertram. "In fact I'm going just as far as it is possible for any one to go. It isn't alone because I think a lot of that little kid in there, who has been struck down in this ruthless way. There's a long score to be settled before Jimmy Coyle's case is to be considered at all. For one thing I believe the man who shot this boy, and who has been doing these murders around here, the work of the masked horseman, is the same person who killed Nick Caldwell."

"I thought Nick was killed by a general volley, fired by the invaders when the ranch on the Lower Powderhorn was burned," said Woods in surprise.

“He was and he wasn’t. Nick was wounded when he started to run, but he wasn’t badly hurt until he had almost made his get-away. I believe that the boys with Swingley’s outfit had so much admiration for the fight Nick had put up in that cabin that they were shooting wild, just to let him escape. Swingley knew that. He had determined to get Nick at any cost, and he wasn’t going to see him escape. So, just when the firing lulled, and Nick was about to leap into the underbrush to safety, there came one shot, which drilled him, just as cleanly as that boy was shot, and as Hersekorn has been shot, and as all the rest of the victims of the masked horseman have been shot. There’s no telling just who did it, but Swingley was really guilty in Nick’s case, whether he fired the shot or whether he didn’t.”

“Well, in the boy’s case we’ve made a start, at least, toward something tangible,” said Woods. “I’m going to turn questioner now and ask you how we are going to go about finding the man who made those finger prints.”

The Texan smiled enigmatically. “That’s something we’ll have to leave to the gods,” he replied. “Meantime I want you to give me some of that powder, as I might have to do a little finger-print experimenting myself.”

“Take the bottle and the brush,” replied Woods. “I believe you can carry this thing along further than I can now. I seem to be at the end of my rope.”

The Texan put the bottle and the brush in his pocket. Then he carried Jimmy’s clothes and rifle back to the bedroom.

Making sure that the boy was resting easily, and once more getting assurance from Uncle Billy that the patient would recover in due time, the Texan mounted his horse and rode toward town, after saying good-by to the district attorney.

Alma Caldwell watched him through one of the windows of the ranch house. He had hardly spoken to her while he was at the ranch, nor did he turn in the saddle for a backward glance at the place. She saw his broad shoulders and wide gray hat, rise and fall in easy undulations, as the Texan’s mount was urged into a gallop toward Wild Horse.

CHAPTER IX

SOME DEBTS ARE PAID.

The arrival of one additional horseman in the principal street of Wild Horse was something to attract no attention whatever. Several hundred riders had arrived at that headquarters of industry and gossip, ahead of Milton Bertram. Most of them, it is to be said, were interested in the gossip, rather than the prosaic affairs of the cattle industry. The news of Jimmy Coyle's shooting by the masked horseman had spread fast and far, and men had ridden far and fast to talk it over.

Only the Texan did not urge his horse at top speed, like the others, as he entered the town. On the contrary he slackened the animal's steady pace a trifle. One might have thought that he had come in from a distant camp for supplies, and that he would soon be heading forth again, a slave of the vast region of silences which binds its victims none the less strongly because they are willing in servitude.

Perhaps something in the unusual keenness of the Texan's glance from one building to another would have told one of his intimate friends that something out of the ordinary was on his mind. But to the average beholder he was merely one more cowboy, riding into town, a handsome fellow to be sure, long of limb, broad of shoulder, and with a certain supple grace in the saddle that marks the born horseman. His features, which ordinarily were expressive of the lightest sentiment that crossed his mind, to-day seemed molded into a hard mask of determination. His dark eyes, under level brows, were calm enough, but it would take little, apparently, to light the fires of anger in them.

Obviously the Texan was undecided just where to stop. He reined his horse momentarily in front of the hotel and then drove on and crossed the street to a saloon and gambling place, known as Laroque's.

As he dismounted and tied his horse to a hitching rack that had little vacant space, the Texan's motions were deliberate. He made sure that his horse was securely tied, something entirely unnecessary, seeing that the well-trained animal would not have stirred away if the reins had been left

trailing. But, while he was going through the mechanics of making secure his horse's place at the rack, the Texan's mind had leaped ahead, and he was visualizing Laroque's place something as follows:

"Let's see: Eddie Laroque himself will probably be tending bar. That's good, because Eddie is no rat, and he will stick when trouble starts. There aren't any doors into the room where the gambling layouts are. The open doorway's not more than one jump from the end of the bar. The barroom itself is plenty wide. There's elbow room enough for an orchestra of fiddlers let alone a couple of gun fighters. I guess Laroque's is as good a place as any."

With a good-by pat on the white-starred forehead of his horse the Texan turned toward Laroque's, mechanically adjusting the guns at his hips, as he did so. Here again there would have been nothing to arouse more than passing interest on the part of the ordinary spectator, for every cowboy, who had entered Laroque's, had made that same readjustment of revolvers. It was a fighting man's country, and Laroque's specialized in entertainment for men of that sort. Eddie's shutters had been taken down and used so often to carry out men, who were either dead or desperately wounded, that it was said that the hinges were being worn out. Laroque himself was supposed to order his big mirrors by the half dozen, for every gun fight saw one shattered.

There was a long line of men at Laroque's bar, as the Texan entered the saloon, and others were sitting in little groups at the tables to the right. The Texan instinctively realized that Jimmy Coyle's shooting had caused something approaching a revolt in the Swingley ranks. Hardened as the invaders were and accustomed to the idea of killing, this shooting of a mere boy and leaving him for dead was something that went against the grain.

Bertram had no sooner set foot in Laroque's place than the group at the first table called him over and inquired about Jimmy Coyle's condition. Bertram sat down, but in such a position that he could see through the open doorway into the gambling establishment.

"Swingley and Hoog are here," said one of the cow-punchers, "and they're sure as restless as a couple of mountain lions. Likewise they've both been taking on more liquor than common."

"I know you don't stand any too well with 'em, Milt, on account of your quittin' the command," observed another puncher. "Unless you are courtin' argymint, I advise your seekin' entertainment elsewhere."

"I'm here, and I always did like the homelike atmosphere of Eddie Laroque's place," responded Bertram quietly. "I reckon I'll stay."

As he spoke, the Texan saw Tom Hoog entering the open doorway. Though he must have seen the Texan, who was in plain view, Hoog made no sign, but walked to the bar.

With one foot on the rail, his elbow on the bar, the gunman let his gaze travel slowly over Bertram, from head to foot. The others at the table shoved back uneasily. Those who were in the direct line of fire rose and stepped to one side. The Texan returned the gaze calmly enough. The men who flanked Hoog at the bar, after a startled glance around, edged away.

"Texas ain't produced but few quitters," said Hoog, in a loud voice, though apparently he was not addressing anybody. "But, when it does produce one, he's all yellow."

Bertram did not change his expression nor his attitude. Hoog's face reddened with sudden passion. As he stood at the bar, his long, saturnine countenance writhing with hate, more men slipped quietly out of the room, feeling that the storm could not be delayed many seconds longer. The gunman stood with one arm resting on the bar, though he had not touched the glass that had been shoved toward him by the despairing Laroque, who had already counted another mirror as good as smashed.

"Push along another glass, Eddie," went on Hoog. "I'm goin' to have a drinkin' companion. Come on over here, you big feller from Texas. You never would drink with me before, but you've got to to-day, because I've got a special toast fer you."

Bertram rose slowly and walked over to the bar, beside Hoog, as calmly as if he had been invited by his most intimate friend. The bartender shoved the bottle of bootleg toward him, and the Texan poured out a drink. The spectators noticed that his hand did not tremble.

"Now pour me a good, stiff drink," said Hoog, determined to goad Bertram into an attempt to draw. "I'm tired to-day, and I need a waiter to pour my liquor for me."

To the amazement of the onlookers, who had surged quietly away from; the bar to new positions out of the line of fire, Bertram did as directed. He filled Hoog's glass almost to the brim. Even the gunman was surprised at the obedience to his insulting order. His left hand, which had been half opened at his side, for Hoog was an ambidextrous fighter, dropped away

from the pistol butt that peered from the worn leather scabbard at the gunman's hip.

"Now let's drink," said Hoog, jubilant at having humiliated Bertram before the crowd. "Drink to the State you've disgraced—Texas."

Both men drank, Hoog raising his glass to his lips with his right hand and tossing off the liquid. As they set down their glasses, Hoog said: "If there's any word that'll make you fight, Bertram, tell me what it is, and I'll say it."

But the Texan apparently did not hear. He had produced the little bottle of gray powder which the district attorney had given him. Evidently he had palmed the bottle before he had stepped to the bar, as he made no move toward his pocket to get it. With the little brush, which was inserted in the cork, he dusted some of the powder on the outside of Hoog's whisky glass.

The gunman, with every one else in the room, was watching with undisguised interest, as the Texan inspected the glass.

"Goin' to give us a little parlor magic?" asked Hoog.

Bertram set down Hoog's whisky glass, carefully refraining from touching it, where the gray powder showed on the outside.

"Hoog," he said softly, "that was a long, long time ago when you got bitten in the right thumb by a rattlesnake, wasn't it?"

"How do you know I had a rattlesnake bite me?" asked the gunman, disconcerted at the unexpectedness of the question.

The Texan's eyes and face blazed into anger. His supple frame tightened, and his voice came, quick, sharp and electrifying.

"Because you leave the mark of it on everything you touch, you prowling hound. You didn't know it, but you might as well have signed your name, every time you posted a notice, you masked assassin. You left your thumb print, with the snake scar on it, on little Jimmy Coyle's chaps and rifle. You've left it on this whisky glass, and it's your confession and your death warrant, all rolled into one. Now, if you want to fight, draw and we'll see if I have disgraced Texas."

Confronted thus suddenly and unexpectedly with evidence of his guilt, Tom Hoog was a fraction of a second late in reaching for his weapons. The young Texan had given the gunman a fair chance at the draw, but Hoog, for the first time in his life, was not equal to the emergency. Before his terrible

guns were out of their holsters two bullets had been sent from the weapon of the crouching Texan.

Hoog stood for a moment, a wound in either arm, just above the elbow. His long, sinuous hands were powerless to grasp the revolvers that had never failed before. Then he fell in a heap on the floor.

The men, who had prepared to rush from the room at the first sign of conflict, had not stirred. The fight had developed so unexpectedly, after every one believed that all signs of trouble were over, that even the most phlegmatic had been taken completely by surprise.

Leaping over Hoog's prostrate form the Texan ran through the open door. At the sound of the two shots the gamblers had ceased all play. Asa Swingley, who had just started a game at the head of the room, kicked over his chair and, drawing both guns, had started toward the barroom. He saw Bertram in the doorway, his smoking weapons in his hand.

Instinctively Swingley raised both revolvers, but, before he could pull a trigger, Bertram had "creased" him twice, and the outlaw leader staggered to a chair.

The Texan, firing from the hip, had disabled the second man even more quickly than the first.

Sheathing one of his weapons, but carrying the other at a threatening angle, Bertram turned back to the barroom. "Laroque," he said, "see that these two disabled outlaws are properly guarded until the sheriff arrives." Then, picking up Hoog's whisky glass, Bertram held it out to Laroque. "Here, Ed, take this whisky glass in the palm of your hand. Careful, now, and don't touch that powder on the outside of the glass. That's state evidence against this assassin, Hoog, and his employer, Swingley. Put it away in your safe, and the district attorney will be in here in a few minutes to get it. If you've brushed so much as a speck of the dust off that glass, you'll be run out of town. Swingley's reign is ended in this county. We're going to hand these assassins over to the court, and we'll see that they get what is coming to them. From now on law and order are going to rule here."

Paying no attention to the questions and congratulations that the men showered upon him, the Texan made his way to the door. As he untied his horse, he could hear the babel of voices, as the cow-punchers, with their tongues loosened, began to crowd about Swingley and Hoog.

CHAPTER X

THE TEXAN HEARS FROM HOME.

Uncle Billy Coyle, after having, as he thought, catalogued every living thing that ranged the hills and plains of Wyoming, had run across an entirely new specimen. It was the human being in love that bothered Uncle Billy.

"I've studied the effects of loco weed on cows and horses," observed Uncle Billy to Alma Caldwell, "but the vagaries of human beings, who have been attacked by the love germ, are past all scientific consideration. Now you admit that you're in love with Milton Bertram, and that ingenuous young Texan has confided in me that he thinks more of your lightest word than the council of all the encyclopedias I have in my library. Yet apparently something seems to be holding you as far apart as it is possible for persons to get."

"If you're going to start on that subject again, Uncle Billy, I'm going to leave you," said Alma, flicking disconsolately at a fallen leaf with her quirt. "I came over to tell you how well little Jimmy is getting along, and how he took his first horseback ride to-day. I didn't care to hear about Bertram."

"Well, you'll have to hear considerable talk about him, wherever you go," observed the naturalist. "When a young fellow nails two such gunmen as Tom Hoog and Asa Swingley, and practically ends the reign of assassination and terror in this part of the State, he is bound to figure in the general conversation."

The girl did not reply, and Uncle Billy continued gently:

"If you're thinking about your stepfather, girl, it's time I told you something. Nick Caldwell was a good man in many ways, but in some other ways he let his greed run away with him. He took good care of you, which I always held so strongly in his favor that I never took him to task for some of the things he did which I knew was wrong."

Alma looked at the naturalist with startled eyes.

"I'm sorry to have to tell you this, if it destroys any ideals you may have had. It does you credit to think so well of Nicholas Caldwell, and to pay

him back so handsomely in loyalty and love for the material advantages he gave you. But, after all, you may as well know all sides of the man's character. Nicholas was a leader among the cattle rustlers, as has been charged. That much I know, but I also know that his rustling operations were carried on merely as a blind to hide larger operations in the interests of the cattle interests. He and Swingley were in the inner circle which was dominating those great interests, but they had a personal falling out. Swingley had vowed that he would kill Nicholas at the first opportunity, on account of their personal feud, which had developed suddenly, and which not even I had suspected. When Swingley led his invaders into this county his first thought was to kill Nicholas Caldwell. That was why he went to such lengths to burn the cabin on the Lower Powderhorn.

"All this I found out when this young Texan was brought to my place, wounded. In his clothing I found letters, which he had evidently taken from the body of Nicholas, just before you and Jimmy came upon him. I did not scruple to read those letters, because they concerned my own kin. As soon as he recovered sufficiently to ask for his clothes and to stir about a little, the young Texan burned the letters, thinking no doubt that by so doing he would protect Nicholas Caldwell's name, and thereby save you from any heartache."

"But the go-devil," said Alma. "I was told that he was responsible for making the machine that was really the cause of my stepfather's death."

"I happen to know that he was not," replied Uncle Billy. "It is true that he made such a machine, or rather completed it, under Swingley's orders. But Archie Beam told me that the machine was really the cause of Bertram's desertion of Swingley's invaders. Rather than continue with an outfit that made war in such a way, Bertram smashed the go-devil which he had just completed, and then he started alone into the hills. Beam was present when the machine was smashed, and he tried to dissuade the young Texan from going to what seemed sure death. The go-devil was fixed up later, when the invaders' blacksmith arrived, but Bertram really caused a great delay in the final attack on the cabin."

"There is another matter which probably you do not know," went on the naturalist. "That is the fact that when he captured Swingley and Hoog, this young Texan got the men who were actually responsible for your stepfather's death. Swingley's guilt, of course was apparent, but you did not know that, when the others in the command were disposed to let Nicholas

escape, as he was running toward the foothills, it was Tom Hoog who was called upon to fire the fatal shot. Swingley cursed the other cowboys for their purposely bad marksmanship and commanded Hoog to get the fleeing man. Hoog aimed deliberately, and it was that final shot which brought about Nicholas Caldwell's death."

Alma Caldwell rose unsteadily. "Then I owe him everything," she said. "What a wrong I have done by taking so much for granted!"

"Well," rejoined the naturalist, "he's coming now, so you can tell him, like a good girl."

But it was the Texan who did the telling. "Alma," he said, as the girl came to meet him, and the naturalist discreetly retired to the companionship of the stuffed specimens in the cabin, "Alma, I'm going back to Texas. My uncle has written me that he wants to turn over his ranches to me, as part owner and manager. I never felt lonesome down there before, but I'm going to this time, unless you go with me. Can you leave this country, as the wife of one of the invaders?"

The girl's eyes smiled into his, as she replied: "I always did like Texas."

Then, as his arms went about her, she added: "And Texans!"

Transcriber's Note: This story appeared in the January 7, 1922 issue of *Western Story Magazine*.

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